

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO.
011982, HAPAG-LLOYD AG, HMM CO.
LTD., MAERSK A/S, MSC MEDITERRANEAN
SHIPPING COMPANY S.A., OCEAN NETWORK
EXPRESS PTE. LTD., WAN HAI LINES LTD., YANG
MING MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

IMCC’S STATEMENT OF UNDISPUTED MATERIAL FACTS

IMCC hereby submits the following material facts, with record citations, for which there is no genuine dispute in support of its motion for partial summary decision.

TABLE OF CONTENTS

I.	IMCC HAS STANDING.	1
II.	RESPONDENT OCEAN CARRIERS DIVESTED THEIR CHASSIS FLEETS AND ENTERED INTO AGREEMENTS WITH IEPS FOR CHASSIS PROVISIONING.	3
A.	The Chassis Paradigm Shift	4
B.	Business Models for the Provision of Chassis	10
	i. Interoperable “Gray” Pools with Choice: The CCM Model and Box Rules.	10
	ii. Single-Provider Pools.	13
	iii. The “Pool of Pools” Model.	14
	iv. Motor Carrier-Provided Chassis.	16
C.	Loading of Chassis at Intermodal Terminals.	16
	i. Grounded vs. Wheeled Operations.	16
	ii. The Role of Railroads at Inland Intermodal Terminals.	18
III.	RESPONDENT OCEAN CARRIERS’ POLICIES AND PRACTICES DEMONSTRATE THAT CCM RULES 5.5 AND 5.7 RESTRICT CHASSIS CHOICE AND THAT LESS INTRUSIVE ALTERNATIVES ACHIEVE AN ADEQUATE SUPPLY OF CHASSIS.	23
A.	Respondent Ocean Carriers Approved and Implemented Rules 5.5 and 5.7, Which Permit Them or Their IEPS to Exercise Veto Power Over Chassis Choice.	23
B.	Pursuant to Rule 5.5 and 5.7, Respondent Ocean Carriers Establish and Implement Chassis Policies Restricting or Permitting Choice on a Normal, Customary, and Continuous Basis.	27
C.	Motor Carriers and BCOs Are Increasingly Exercising Chassis Choice.	46
IV.	RESPONDENT OCEAN CARRIERS’ CONTRACTS WITH IEPS LINK CH RATES TO MH VOLUME.	46

A.	Ocean Carriers’ Contracts with IEPs Link CH/MHE Rates to MH Volume.	46
B.	Each Ocean Carrier Designates One IEP as the “Exclusive,” “Default,” “Dedicated,” “Unitary Pool Concept Equipment Supplier,” “Recommended,” or “Preferred” Provider for CH Moves and/or for MH Moves.	91
C.	The Lower CH Rates Paid By Respondent Ocean Carriers Are Subsidized By the Higher MH Rates Paid By Motor Carriers and BCOs.	113
D.	Chassis Choice is Not Available in Proprietary Pools, Giving IEPs Negotiating Leverage Over Motor Carriers and BCOs for MH Rates.....	119
E.	MH Rates are Lower When Chassis Choice is Available, and Motor Carriers Have Paid Higher MH Rates Because of the Lack of Chassis Choice.	121
V.	RESPONDENT OCEAN CARRIER CONTRACTS THAT REQUIRE USAGE OF IEP PROPRIETARY POOLS INSTEAD OF CCM INTEROPERABLE GRAY POOLS REDUCE COMPETITION FOR MH RATES AND INCREASE COSTS ON SUPPLY CHAIN STAKEHOLDERS.....	125
A.	Respondent Ocean Carriers Enter into Contracts That Transition Them Out of CCM Interoperable Pools and Into IEP Proprietary Pools.	125
B.	Respondent Ocean Carriers Agreed that Interoperable Gray Pools Benefit the Intermodal Supply Chain.	141
C.	Despite Their Agreement that Interoperable Gray Pools Benefit the Intermodal Supply Chain, Respondent Ocean Carriers Chose Their Short Term Financial Interests Instead.	150
VI.	THE RESPONDENTS’ CONDUCT HAS HARMED MOTOR CARRIERS, BCOS, AND THE SHIPPING PUBLIC.....	156
A.	The Closure of the COCP and the Fragmentation of the MCCP Have Resulted in Decreased Productivity and Increased Costs for Motor Carriers and Their Customers.	156
B.	The Lack of Interoperable Chassis Pools Increases Supply Chain Inefficiencies and Costs.	161
VII.	LESS INTRUSIVE ALTERNATIVES TO THE CHALLENGED CONDUCT EXIST.....	164

VIII.	THE MARKETS IN WHICH THE RESPONDENTS' CONDUCT SHOULD BE ASSESSED.	165
A.	Relevant Product Markets	165
	i. There are significant financial and practical barriers to motor carrier substitution of owned or leased chassis for daily rental chassis.	168
	ii. Daily Chassis Usage for MH Movements is a relevant product submarket.	172
B.	Relevant Geographic Markets	173
IX.	ADDITIONAL FACTS.	176

1. IMCC hereby incorporates the Joint Stipulation of Facts in full. *See* Dkt. 87, 88.

I. IMCC HAS STANDING.

2. IMCC members have suffered harm as the result of Respondents' conduct.

3. At least one IMCC member paid invoices to the designated IEP participating in the Pool-of-Pools in Los Angeles/Long Beach to transport containers of each of the Respondents. *See* CX00004463 (showing TRAC Intermodal billing IMC \$ [REDACTED] for daily rental chassis to move a CMA container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move a COSCO container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move an Evergreen container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move a Maersk container; DCLI billing IMC \$ [REDACTED] for daily rental chassis to move a MSC container; Flexi-Van billing IMC \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing IMC \$ [REDACTED] for daily rental chassis to move a Wan Hai container; TRAC Intermodal billing IMC \$ [REDACTED] for daily rental chassis to move a Yang Ming container; and TRAC Intermodal billing IMC \$ [REDACTED] for daily rental chassis to move a ZIM container).

4. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Chicago region. *See* CX00002764 (showing TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a CMA container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move a COSCO container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing CPG \$ [REDACTED] for

daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a MSC container; Flexi-Van billing CPG \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Yang Ming Container; and TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an Evergreen container).

5. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Memphis region. See CX00002764 (showing TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a CMA container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move a COSCO container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a MSC container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Yang Ming container; and TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an Evergreen container).

6. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Savannah region. See CX00002764 (showing TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a CMA container; TRAC

Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a COSCO container; NACPC billing CPG \$ [REDACTED] for daily rental chassis to move a Hapag-Lloyd container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an HMM container; DCLI billing CPG \$ [REDACTED] for daily rental chassis to move a Maersk container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move an ONE container; TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a Yang Ming container; and TRAC Intermodal billing CPG \$ [REDACTED] for daily rental chassis to move a ZIM container); CX00002770 (Fehribach Dep. Ex. 13) (showing DCLI billing CPG \$ [REDACTED] for daily rental chassis to move an MSC container); Evergreen Shipping Invoice, CX00006143 (Mark George Dep. Ex. 53) at 143-44 (invoicing IMC \$ [REDACTED] for daily rental chassis to move an Evergreen container).

7. At least one IMCC member has suffered injury from Respondents not being served by chassis in the COCP in Chicago and the COCP's subsequent closure. *See* Lhotak (Reliable) Dep., CX00000477 at 180:7-181:3; *see also infra*, Section VI.A.

8. At least one IMCC member has been injured by certain Respondent ocean carrier's non-participation (or prospective non-participation) in the MCCP. *See* Scott George (TCW) Dep., CX00000640 at 144:16-145:19, 148:10-151:7 (testifying that the lack of ocean carrier participation and interoperable chassis pools like the MCCP increases chassis splits and TCW's cost and summarizing Ex. 41); CX00005566 (Scott George Dep. Ex. 41); *see also infra*, Section VI.A.

II. RESPONDENT OCEAN CARRIERS DIVESTED THEIR CHASSIS FLEETS AND ENTERED INTO AGREEMENTS WITH IEPS FOR CHASSIS PROVISIONING.

9. Containers used in the international movement of cargo are standardized under standards published by the International Standards Organization. The most common container sizes are 20-foot, 40-foot and 40-foot "high cube." Because they are standardized, ISO-

compliant containers can be handled by ports and inland terminals equipped to handle such containers, as well as providers of rail, barge, and road transportation. Rodrigue Initial Expert Report, CX00001362 at ¶ 16, CX00001522-23.

10. Chassis are used in “receiving, handling, storing or delivering property,” 46 U.S.C. § 41102(c), that is, the cargo in the ocean containers that are mounted on them.

11. A chassis used by motor carriers to move containers between intermodal terminals and shipping facilities “is a frame with a suspension and axle system, wheels and tires, brakes, a lighting and electrical system, a coupling for towing behind a truck tractor, and twistlocks that provide the securement points to the corner castings on a container. Newly constructed and remanufactured chassis often have high-tech components such as asset tracking, or GPS, weight sensors and automatic tire inflation systems.” “Intermodal Factbook: An Introduction to Intermodal Freight Transportation,” CX00003961 at 976.

12. Like containers, chassis are designed to be interoperable and to carry ISO-standard containers, though some may be limited to specific chassis lengths, such as 20 or 40-foot containers. Rodrigue Initial Expert Report, CX00001362 at ¶ 16.

13. Some chassis may be expandable to handle additional container sizes, including 53-foot domestic containers or specialty sizes, such as tri-axle containers. *Id.*

14. Tri-axle containers are used to move heavy containers (often 20-foot) where state axle-load-limit regulations would otherwise prevent such heavy containers from being moved on public roads. Fehribach (CPG) Dep., CX00000329 at 43:19-25.

A. The Chassis Paradigm Shift

15. The business models for provisioning chassis in the U.S. are unique. In other markets, motor carriers or logistics providers are responsible for the provision of chassis, with

ocean carriers having no direct role in chassis provisioning. The evolution of the business models for the provision of chassis for the movement of marine cargo containers in the United States is an outgrowth of the historical circumstances in which cargo containers were first introduced in the United States and the business model for chassis provision reflect the nature of that introduction. *See* Coates Initial Expert Report, CX00001524 at 530-33.

16. When containerization first emerged in the United States in the 1950s and early 1960s, its key driver/initiator was SeaLand, a container ocean carrier founded by Malcolm McLean. His original idea was to load chassis and containers/trailers onto the ship, but this idea turned out to be impractical. The use of containers without chassis or wheels proved to be more efficient, leading to a separation between containers and chassis operations that has remained since. As McLean had a trucking background, he considered the inland (truck) leg of containerization very important to the overall transport process. Therefore, strategic decisions made by SeaLand were aimed at supporting truck operations as part of intermodalism. *Rodrigue Initial Expert Report, CX00001362 at ¶ 23; see also Coates Initial Expert Report, CX00001524 at 530.*

17. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 24.

18. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 25.

19. SeaLand was purchased by CSX in 1986, which brought a railroad's intermodal perspective to the supply of chassis. Similarly, APL was a major innovator concerning the integration of rail into the intermodal system. It introduced the first intermodal trains in the late 1970s, with full container trains between Los Angeles and New York. Rodrigue Initial Expert Report, CX00001362 at ¶ 26; *see also* CX00001778, *History of APL Limited*, FUNDINGUNIVERSE, <http://www.fundinguniverse.com/company-histories/apl-limited-history/> (last visited Feb. 28, 2022); CX00006151, *APL Highlights Significant Contributions to Containerization*, SEAPORTS PRESS REVIEW (Apr. 6, 2006), https://web.archive.org/web/20061229100504/http://www.seaportspr.com/viewtechnews.cgi?newsletter_id=49&article_id=2200.

20. Beginning in the 1990s, several mergers and alliances started to take place in the shipping industry, which complicated chassis operations. Once an alliance was established, chassis pools needed to be reorganized to reflect the new partnership structure. The outcome of

this consolidation was the establishment of co-op pools, or “alliance pools” by ocean carriers. These pools were an attempt to coordinate and make fully interoperable the regional chassis assets of IEPs. Rodrigue Initial Expert Report, CX00001362 at ¶ 27; *see also* CX00001783 at 822, CPCS Transcom, InterPro Advisory, Prime Focus, and Jean-Paul Rodrigue (2012), Guidebook for Assessing Evolving International Container Chassis Supply Models; CX00001966 at 968-69, 977, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

21.

Report, CX00001362 at ¶ 28; *see also* CX00002436 (Wilson Dep. Ex 9) at 437.

22.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” CX00002436 (Wilson Dep. Ex 9) at 437.

23. CCM had six pool LLC subsidiaries. These subsidiaries and the port and inland terminal metropolitan areas that they served include: (1) Chicago & Ohio Valley Consolidated Chassis Pool LLC (Chicago, IL; Cleveland, OH; Cincinnati, OH; Columbus, OH; Detroit, OH; Indianapolis, IN; Louisville, KY); (2) Denver Consolidated Chassis Pool LLC (Denver, CO; Salt Lake City, UT); (3) Gulf Consolidated Chassis Pool LLC (Houston, TX; Dallas, TX; New Orleans, LA; El Paso, TX; Fort Worth, TX; San Antonio, TX); (4) Mid-South Consolidated Chassis Pool LLC (Memphis, TN; Nashville, TN); (5) Mid-West Consolidated Chassis Pool LLC (St. Louis, MO; Kansas City, KS; Omaha, NE); and (6) South Atlantic Chassis Pool LLC (Atlanta, GA; Charleston, SC; Charlotte, NC; Jacksonville, FL; Savannah, GA; Tampa, FL). Joint Stipulations at ¶ 200.

24. On August 19, 2020, GCCP formally closed, and GCCP’s contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 202.

25. On August 19, 2020, the COCP formally closed and COCP’s contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 204.

26. The SACP operates under its own agreement, FMC Agreement No. 011980. Joint Stipulations ¶ 205.

27. For ocean carriers wishing to make use of on-dock chassis at the Ports of Savannah, Jacksonville, and (currently) Charleston, use of the SACP is currently mandated by the Ports of Savannah and Jacksonville. Joint Stipulations at ¶ 207.

28. “ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

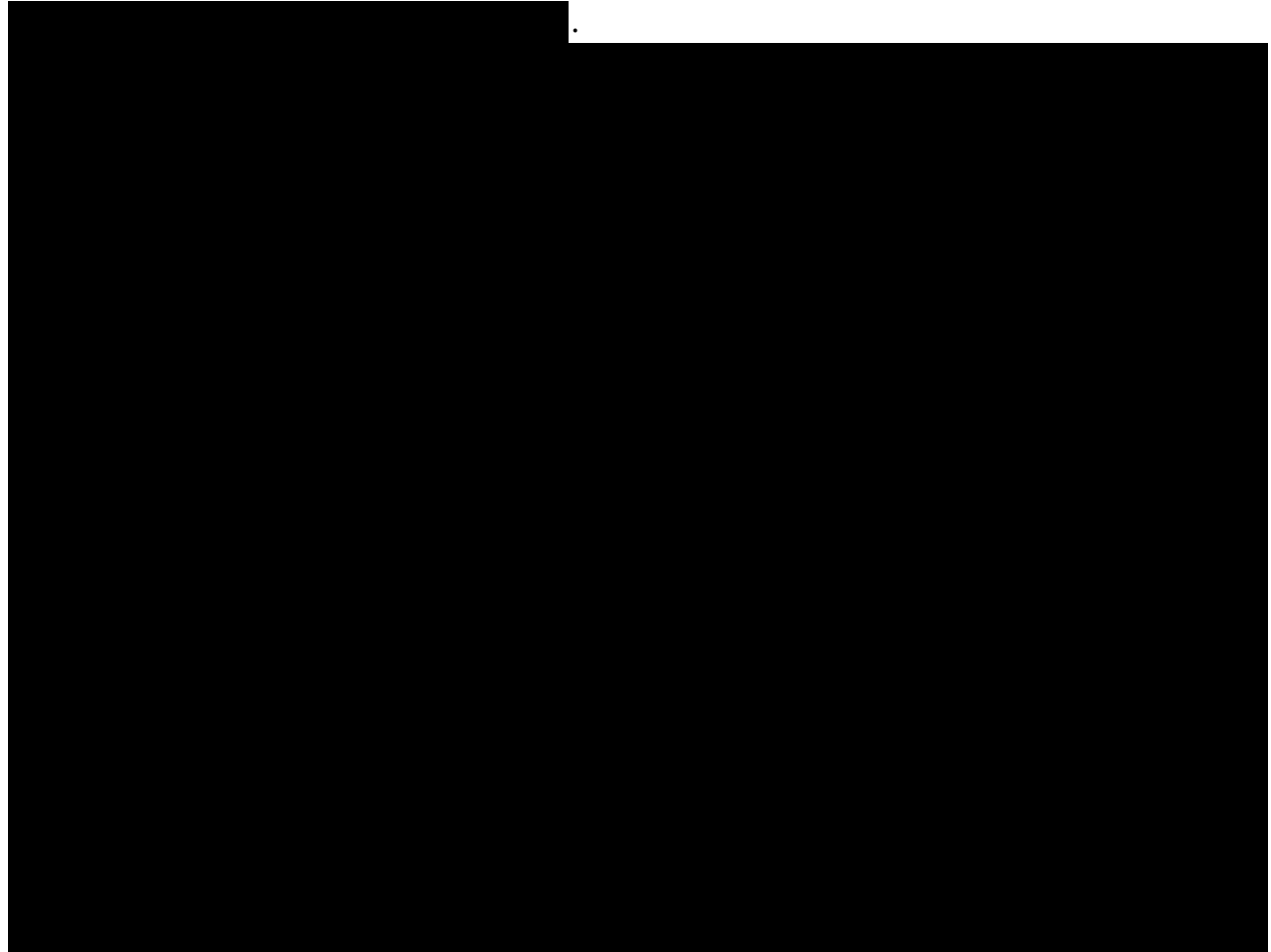
[REDACTED].” CX00002436 (Wilson Dep. Ex 9) at 437.

29. CCM estimates that, as of the end of 2019, the U.S. chassis inventory was approximately [REDACTED]. Of these, [REDACTED]% were owned by DCLI ([REDACTED]%), FlexiVan ([REDACTED]%), and TRAC ([REDACTED]%). Ocean carriers accounted for [REDACTED]%. Motor carriers accounted for [REDACTED]%, [REDACTED].

[REDACTED]

“OCEMA Senior Steering Committee” presentation (March 26, 2020), CX00004883 (Tock Dep. Ex. 13) at 890.

30. 



Id. at 400.

B. Business Models for the Provision of Chassis.

i. Interoperable “Gray” Pools with Choice: The CCM Model and Box Rules.

31. “Fully interoperable” or “gray” chassis pools are chassis pools managed by a single entity in which equipment contributed by multiple equipment providers are commingled. Joint Stipulations at ¶ 193.

32. A gray chassis pool does not require matching a specific equipment provider's chassis with a particular ocean carrier's containers. Joint Stipulations at ¶ 194.

33. The CCM business model is a gray pool model based on the contribution of chassis to an interoperable pool [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Lawrence (OCEMA) Dep., CX00000448 at 90:15-92:21.

34. CCM's strategy was to "[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]." Minutes of the OCEMA Senior Steering Committee (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 277; *see also* Wilson (CCM) Dep., CX00000490 at 51:16-53:5 (agreeing that the minutes were an accurate description of CCM's strategy as of Dec. 2012 and explaining the strategy as: "[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].").

35. CCM serves as the manager of its pools and is responsible for the maintenance and repair of contributed chassis for which services it bills chassis contributors as well as for other administrative fees. Coates Initial Expert Report, CX00001524 at 532-33.

36. CCM rules establish a mechanism for the assignment of chassis “usage” to a contributor, which gives that contributor the right to bill its customer for usage of a chassis regardless of the contributor of the chassis the customer physically uses. Tock (CCM) Dep., CX00000459 at 118:25-120:8.

37. The need to establish such assignment rules began with the Maher Terminal pool in New Jersey. “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”

CX00002436 (Wilson Dep. Ex 9) at 437.

38. Consequently, in the years immediately following the establishment of the CCM pools, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

39. At about the same time as they began selling their chassis, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

40. When established in 2013, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” *Id.*

41. The formation of non-party North American Chassis Pool Cooperative, LLC (“NACPC”), an IEP, was affirmatively approved by the Surface Transportation Board in 2013. Pursuant to that decision, NACPC remains under the Board’s continuing jurisdiction. CX00001995 at 998, *North American Chassis Pool Cooperative, LLC – Pooling Application*, Docket No. MCF 21050 (Decision, January 22, 2013).

ii. Single-Provider Pools.

42. The concept of a single-provider pool is also known as a “proprietary pool,” “private pool,” or a “neutral pool” (because it serves multiple ocean carriers). In the single-provider model, an individual IEP owns chassis pooled at selected locations, usually in proximity to container yards, and the motor carrier must pick up and drop chassis from selected locations offered by the IEP. The daily charges for chassis used from a private pool are set via negotiated contract or through posted daily rates. CX00001362 at ¶ 57; *see also* CX00001966 at 975, U.S. Government Accountability Office (“GAO”) (2021), *Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role*.

43. [REDACTED]

[REDACTED]

[REDACTED]. An IEP may claim its higher quality chassis in its single-provider pool provides an advantage over use of competing pools. However, [REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 58; *see also* CX00001957, Ari Ashe, *DCLI exiting NVO business to deal directly with truckers*, THE JOURNAL OF COMMERCE (Oct. 6, 2020), https://www.joc.com/trucking-logistics/trucking-equipment/direct-chassislink-inc/dcli-exiting-nvobusiness-deal-directly-truckers_20201006.html.

iii. The “Pool of Pools” Model.

44. The “pool of pools” model differs from the gray pool model in that it involves the interoperation of separate chassis pools managed by the participating IEP. Similar to a gray pool, a pool of pools permits a chassis to be used to move the containers of ocean carriers having contracts with a participating IEP regardless of ownership of the chassis being used, with flexible pick-up/drop-off locations, allowing for inter-pool chassis interoperability. However, unlike in a gray pool, each IEP retains responsibility for the M&R of its own chassis. Tock (CCM) Dep., CX00000459 at 25:14-26:100.

45. The key active pool of pools in the United States is in San Pedro Bay, supporting the Los Angeles/Long Beach port complex. At the POP, established by DCLI, TRAC Intermodal, and Flexi-Van at the ports of Los Angeles and Long Beach, chassis owned by those IEPs can be used on an interoperable basis. Joint Stipulations at ¶ 195.

46. The Los Angeles/Long Beach POP began operations in March 2015 and its combined fleet is provided by DCLI’s “DCLP”, TRAC Intermodal’s “TPSP”, and FlexiVan’s “FLBP” pools. CX00001990, The Pool of Pools, <http://www.pop-lalb.com/> (last visited Apr. 27, 2022).

47. As of August 20, 2020, the POP website had stated the following:

Prior to the POP, the operation of multiple independent chassis pools in Los Angeles and Long Beach created situations where chassis in different pools were segregated at facilities for use only by certain user bases, and returnable only to a fraction of the facilities otherwise available to receive chassis. These inefficiencies often resulted in lost time and revenue to a motor carrier, duplicative repositioning, and confusion on terminals and rail ramps. The “gray fleet” that is the POP has smoothed the impacts to chassis operations that would have otherwise occurred in the ever-changing landscape of ocean carrier alliances and terminal operations, increases overall efficiency and availability, and significantly reduces chassis splits.

Id., Pool of Pools, *About Us*,

<https://web.archive.org/web/20200820222149/http://www.pop-lalb.com/>. The U.S.

Department of Justice issued a business review letter to Flexi-Van Leasing, Inc. and

Direct ChassisLink, Inc. with respect to the POP. Joint Stipulations at ¶ 196.

48. In the POP, usage is assigned to the IEP that has a contract with the ocean carrier whose container is being moved on the chassis, regardless of the IEP whose chassis is physically being used. That IEP then bills the relevant party (e.g., ocean carrier, motor carrier, BCO) for that assigned chassis usage. Declaration of Ronald E. Joseph (Direct ChassisLink), CX00001700 at ¶ 6; Declaration of Nathaniel Seeds (FlexiVan Leasing), CX00001704 at ¶ 6; Declaration of Val Noel (Interpol Inc. d/b/a TRAC Intermodal), CX00001702 at ¶ 6.

49. Under the Chassis Use Agreement among DCLI, TRAC, and Flexi-Van, dated as of May 1, 2015, governing the operation of the Pool of Pools, Section 6 (d) provides: “

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00004429 at 434.

50. [REDACTED]

[REDACTED], it has not been implemented. *See* Mar. 5, 2018 Email from Frank Grossi (COSCO) to Stacy Normington (OCEMA), CX00002488 at 488 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

iv. Motor Carrier-Provided Chassis.

51. The final chassis provision model is the one in which the motor carrier owns chassis or leases them long-term from an IEP and is responsible for maintenance and repair (“M&R”) and repositioning. Under this model, the supply of chassis is part of the transportation service that the motor carrier provides to its customers. Rodrigue Initial Expert Report, CX00001362 at ¶ 63; *see also* CX00001966 at 976, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

C. Loading of Chassis at Intermodal Terminals.

i. Grounded vs. Wheeled Operations.

52. Intermodal container yards have two major configurations that impact chassis operations:

- [REDACTED]
- [REDACTED]
- [REDACTED]

- [REDACTED]
- [REDACTED]

Rodrigue Initial Expert Report, CX00001362 at ¶ 43.

53. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 44.

54. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 44.

55. According to IMC employee [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*; see also Scott George (TCW)

(04/25/22) Decl., CX00001715 at ¶¶ 5, 8; Glenn Fehribach (CPG) (Apr. 25, 2022) Decl., CX00001709 at ¶¶ 4-5, 8.

56. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 45; *see also* Scott George (TCW) Dep., CX00000640 at 153:3-154:8.

57. A chassis flip may be required for several reasons, for example, if the motor carrier brings its own chassis. Rodrigue Initial Expert Report, CX00001362 at ¶ 45; *see also* CX00001783 at 814, CPCS Transcom, InterPro Advisory, Prime Focus and Jean-Paul Rodrigue, Guidebook for Assessing Evolving International Container Chassis Supply Models (2012); Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 133:10-13 (“[REDACTED] [REDACTED].”).

ii. The Role of Railroads at Inland Intermodal Terminals.

58. Ocean carriers have contracts with railroads for the movement of containers to and from intermodal terminals that they serve.

59. CMA has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk Southern Railway Company, Union Pacific Railroad Company, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago and Memphis markets. *See* Basila (CMA) Dep., CX00000534 at 7:3-12.

60. COSCO has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk

Southern and BNSF Railway company to terminals in the Chicago market and Canadian National Railway Company, BNSF Railway Company, and CSX to serve terminals in the Memphis market. *See* Houghtalin (COSCO) Dep., CX00000337 at 336:16-337:13; *see also* Feb. 28, 2021, CN Confidential Transportation Agreement No. 660882-AE, CX00003048 at 054; Aug. 1, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00003082 at 097; April 1, 2019, BNSF Contract MA111 International Transportation Contract, CX00003038 at 039.

61. Evergreen has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Union Pacific Railroad Company to terminals in the Chicago market and BNSF Railway Company and Union Pacific Railroad Company to serve terminals in the Memphis market. *See* Wang (Evergreen) Dep., CX00000773 at 196:12-197:17; November 1, 2005, BNSF Railway Company International Transportation Agreement, CX00003822; May 1, 2006, Union Pacific Railroad Company Exempt Rail Transportation Agreement, CX00003829 (Wang Dep. Ex. 18) at 833.

62. Hapag-Lloyd has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Norfolk Southern Railway Company to serve terminals in the Memphis market. *See* Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 330:12-22, 323:25-324:4; *see also* CX00004152 (Barattini Dep. Ex. 34) at 171.

63. HMM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific

Railway Company, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago market and Union Pacific Railroad Company and Canadian National Railway Company to serve terminals in the Memphis market. *See* Compton (HMM) Dep., CX00000207 at 188:7-189:4; February 4, 2020, Canadian Pacific Confidential Contract #36693, CX00004297 at 309; August 1, 2020, Union Pacific Railroad Company, CX00004315 at 320; June 1, 2021, Canadian National Confidential Transportation Agreement No. 575164-AA, CX00004286 at 294.

64. Maersk has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Canadian National Railway Company to terminals in the Chicago market and CSX to serve terminals in the Memphis market. *See* March 18, 2013, CSX Amendment No. 2 to Agreement for Rail Transport Services, CX00004776 at 827; November 30, 2015, BNSF Railway Company Intermodal Transportation Contract Agreement MA-80 Amendment No. 4, CX00004765 at 773; January 3, 2021, Canadian National Railway Company Confidential Transportation Master Agreement No. 572970-AA, CX00004722 at 732.

65. MSC has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company, CSX, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago market and BNSF Railway Company and Canadian National Railway Company to serve terminals in the Memphis market. *See* Roveccio (MSC) Dep., CX00000799 at 89:11-18, 90:11-16; March 2020 Amendment ONE to CSXT Intermodal International Agreement, CX00004581; May 1, 2020, Amendment No. 1 to BNSF Intermodal

Transportation Contract Agreement MA105, CX00004597; November 15, 2020, Canadian National Railway Company Confidential Transportation Agreement 012808-BZ, CX00004600.

66. ONE has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company, Union Pacific Railroad Company, Norfolk Southern Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Canadian National Railway Company, Union Pacific Railroad Company, and Norfolk Southern Railway Company to serve terminals in the Memphis market. *See* Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 149:7-15; Feb. 2, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00005541; September 1, 2019, Canadian National Railway Company Confidential Transportation Master Agreement No. 561828-AA, CX00005511; June 1, 2020, Norfolk Southern Railway Company Amendment #1 to Intermodal Transportation Agreement, CX00005563; Aug. 1, 2020, Amendment One to the CSXT Intermodal International Agreement, CX00005533 at 457; July 31, 2022, BNSF Railway Company, CX00005503.

67. Yang Ming has contracts with the following railroad companies for rail transportation of cargo containers to and from locations in the United States: (i) Norfolk Southern Railway Company; (ii) BNSF Railway Company; (iii) Canadian National Railway Company; (iv) Canadian Pacific Railway Company; (v) CSX; and (vi) Union Pacific Railroad Company. For example, it has contracts with railroads, including BNSF Railway Company and Canadian Pacific Railway Company to terminals in the Chicago market and Union Pacific to serve terminals in the Memphis market. *See* CX00006156, Stipulations Concerning Respondent Yang Ming Marine Transport Corp., at ¶ 6; May 30, 2019, Canadian Pacific Railway Company Confidential Contract #503894, CX00005958 at 978; July 1, 2018, BNSF Railway Company

Amendment No. 4 to International Transportation Agreement MA40, CX00005944 at 955;
January 1, 2014, Union Pacific Railroad Company First Amendment to Exempt Rail
Transportation Agreement, CX00005981 at 983.

68. ZIM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company and CSX to terminals in the Chicago market and the Memphis markets. *See* Messing (ZIM) Dep., CX00000260 at 79:13-22, 82:24-83:1; Feb. 11, 2016, Second Amendment to the Canadian National Railway Company Confidential Transportation Agreement No. 016223-AY, CX00006136.

69. Through agreement, tariff, or regulation, railroads require ocean carriers to have an adequate supply of chassis to load arriving containers, particularly at wheeled terminals. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 147:21-148:2.

70. At wheeled terminals, railroads require ocean carriers to designate a single chassis pool from which the railroad or ramp operator will take the chassis and on to which the ocean carrier's containers will be loaded. Such pools may include interoperable pools such as CCM pools as well as single-provider pools operated by the major IEPs. [REDACTED]

[REDACTED]

[REDACTED]

“Letter of Authority,”¹ (September 11, 2018), CX00005416 (Armstrong Dep. Ex. 14); Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 328:18-333:18; *see also* Rodrigue Rebuttal Expert Report, CX00001606 at ¶¶ 32-34.

¹ This letter was created from a template provided by the railroad that allowed the ocean carrier to designate TRAC, CCM, DCLI, FLEXI, or OTHER as its sole chassis provider at each ramp operated by Union Pacific. *See also* “Letter of Authority for Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals with Evergreen” (June 30, 2020), CX00003813.

71. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue
Initial Expert Report, CX00001362 at ¶ 46.

72. Railroad operating procedures may also limit the ability of motor carriers' ability
to use a chassis other than one from the pool designated by the ocean carrier whose container is
to be moved. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*
at ¶ 153.

**III. RESPONDENT OCEAN CARRIERS' POLICIES AND PRACTICES
DEMONSTRATE THAT CCM RULES 5.5 AND 5.7 RESTRICT CHASSIS
CHOICE AND THAT LESS INTRUSIVE ALTERNATIVES ACHIEVE AN
ADEQUATE SUPPLY OF CHASSIS.**

**A. Respondent Ocean Carriers Approved and Implemented Rules 5.5 and 5.7,
Which Permit Them or Their IEPs to Exercise Veto Power Over Chassis
Choice.**

73. The Chassis Choice program was developed by OCEMA and CCM during 2012-
13. "[REDACTED]

[REDACTED]

[REDACTED].” “The Chassis “Choice” Dilemma” presentation, CX00002160 (Wilson
Dep. Ex. 10) at 163.

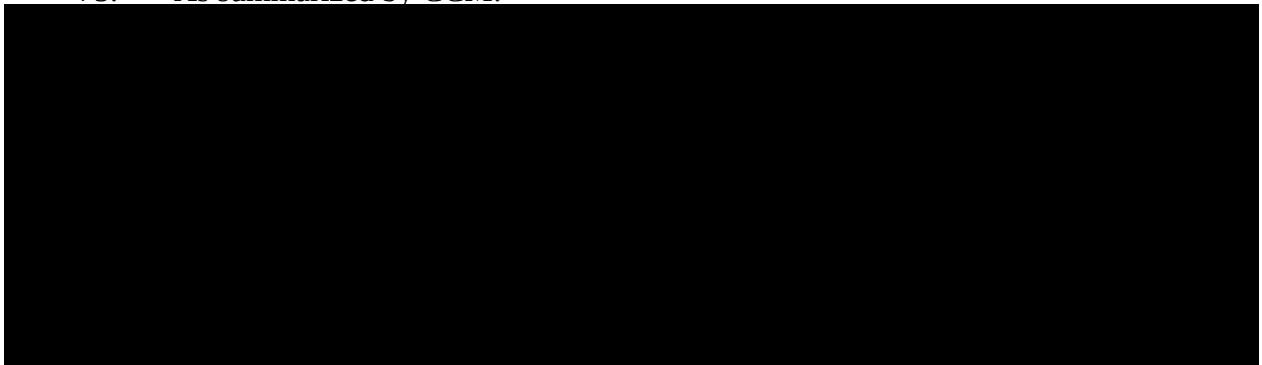
74. In 2012-13 the members of OCEMA and which had representatives on its Senior
Steering committee included:

- APL
- CMA-CCM

- COSCO
- Evergreen
- Hamburg Sud
- Hapag-Lloyd
- Hyundai (HMM)
- K Line²
- Maersk
- MOL
- NYK
- OOCL
- Yang Ming
- ZIM

See e.g., “Minutes of the OCEMA Senior Steering Committee Meeting” (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 280; “Minutes of the OCEMA Senior Steering Committee Meeting” (Sept. 11, 2013), CX00005201 at 206.

75. As summarized by CCM:



“The Chassis “Choice” Dilemma” presentation, CX00002160 (Wilson Dep. Ex. 10) at 164 (emphasis in original); *see also* Tock (CCM) Dep., CX00000459 at 123:14-124:3 (testifying that CCM will “

[REDACTED]

[REDACTED]

[REDACTED].”).

² K-Line, MOL, and NYK were part of an ownership consolidation that became Ocean Network Express in 2018. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 15:14-20.

76. “Box Rules” refers to the assignment of chassis or chassis usage based on the ownership of the container and that ocean carrier’s designation of the default chassis provider. *See Wilson (CCM) Dep.*, CX00000490 at 60:19-61:3.

77. As originally adopted in 2013, CCM Pool Operations Manual Section 8.2 simply provided that the User (i.e., the IEP) Customer (i.e., ocean carrier) information provided to the CCM pool manager was to include a “Description of whether Customer’s Off-Terminal Usage is exclusive to the User or with exceptions.” This provision formalized the choice by exception process. CX00005207 (Tock Dep. Ex. 2) at 231, 233.

78. In 2019, the CCE/CCM Board members approved changes to section 8 of the CCM Pool Operations Manual Version 2.9 effective April 1, 2019, [REDACTED]

[REDACTED]

[REDACTED]. “CCM Pools LLC (CCMP) Operations Manual Version 2.9” (April 1, 2019), CX00002170.

79. Section 8.5 stated, “[REDACTED]

[REDACTED]

[REDACTED].” *Id.* at 190.

80. Section 8.7 stated:

[REDACTED]

Id.

81. According to the description of changes provided at the front of Version 2.9, the revisions to section 8 were “[REDACTED]” *Id.* at 174.

82. Sections 8.8 and 8.9 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 190.

83. CCM regarded the adoption of Rules 8.5, 8.7, 8.8, and 8.9 as the codification in the Operations Manual of policies that were already in place. As a result, the revisions were not presented to the OCEMA Senior Steering Committee but were approved by the Boards of Managers of CCE, CCM, and CCM Pools, LLC. Tock (CCM) Dep., CX00000459 at 99:12-100:25.

84. CCM Pool Operations Manual Version 4.0, effective October 1, 2019, renumbered Rules 8.5, 8.7, 8.8, and 8.9 as Rules 5.5, 5.7, 5.8, and 5.9. The text of these Rules as of October 1, 2019, remains in effect. “CCM Pools LLC (CCMP) Operations Manual Version 4.0” (October 1, 2019), CX00002379.

85. Current CCM Pool Rule 5.7 gives ocean carriers the ability to decide whether the ocean carrier consents to a motor carrier’s request for chassis choice. *Id.* at 398.

86. As of January 28, 2022, CCM’s website contained the following information concerning a chassis customer’s choice in choosing its chassis provider:

CHOICE PROGRAM
MOTOR CARRIERS AND SHIPPERS

Often the chassis customer has little choice in choosing its chassis provider. A container is placed on a chassis at the rail or ocean terminal before the motor carrier arrives for pick up. Unless the container is taken off the chassis and placed on another chassis, the chassis provider is already determined by the ocean container. Within a CCM pool, there are many chassis providers and some of them participate in a program that allows the customer to **choose a chassis provider** without having to lift the container onto a new chassis. . . .

CCM can allow the chassis customer to select their preferred chassis provider in its pools on specified chassis movement. **There are some restrictions.** Shippers and motor carriers can choose a provider when the ocean carrier and the ocean carrier's on-terminal chassis provider participate in this CCM program.

CX00001992, CCM, *Choice Program*, <https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx> (last visited Apr. 27, 2022) (emphasis in original).

B. Pursuant to Rule 5.5 and 5.7, Respondent Ocean Carriers Establish and Implement Chassis Policies Restricting or Permitting Choice on a Normal, Customary, and Continuous Basis.

87. The following table provides ocean carriers' selected chassis provision option within the CCM Pools as listed on CCM's website as of April 23, 2022:

Ocean Carrier	Chassis Provider	CCM Pool	Chassis Provision Option within CCM Pools
CMA	Trac Intermodal	SACP	Chassis provided only by Trac Intermodal unless exception is requested
COSCO Shipping	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested
COSCO Shipping	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested
Evergreen	DCLI	SACP	Chassis provided by DCLI only
Evergreen	DCLI	MCCP	Chassis provided by DCLI only
Hapag Lloyd	NACPC	SACP	NACPC provides chassis unless exception requested and approved
Hapag Lloyd	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested and approved
HMM	DCLI	SACP	Chassis provided only by DCLI
HMM	DCLI	MCCP	Chassis provided only by DCLI
Maersk	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	MCCP	Chassis provided only by DCLI

OOCL	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested
ONE	Flexi-Van	SACP	Flexi-Van provides chassis unless exception requested and approved
ONE	NACPC	MCCP	NACPC provides chassis unless exception requested and approved
Wan Hai	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
Yang Ming	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
ZIM	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved

CCM, *Chassis Provider Search*, <https://www.ccmpool.com/Membership/Chassis-Providers/> (last visited Apr. 23, 2022).

CMA-CGM (“CMA”)

88. As of November 18, 2017, [REDACTED]

[REDACTED]. Fentress (CMA) Dep., CX00000916 at 233:12-18; CX00002684 (Fentress Dep. Ex. 23) at 684. [REDACTED]

[REDACTED]. Fentress (CMA) Dep., CX00000916 at 234:4-13. CCM’s website at the time stated only that chassis for CMA moves in the CCM pools would be provided by TRAC only and did not reference the option to request an exception. Fentress (CMA) Dep., CX00000916 at 236:2-14; CX00002684 (Fentress Dep. Ex. 23) at 684.

89. As of December 2018, [REDACTED]

[REDACTED]. See Fentress (CMA) Dep., CX00000916 at 119:15-18 (“[REDACTED]”), 222:17-223:24; CX00002713 (Fentress Dep. Ex. 20) at 719.

90. As of February of 2018, [REDACTED]
[REDACTED]. Fentress (CMA) Dep., CX00000916 at 241:11-25; *see also* CX00002749 (Fentress Dep. Ex. 24) at 749. [REDACTED]
[REDACTED]. Fentress (CMA) Dep., CX00000916 at 242:12-19.

COSCO

91. COSCO [REDACTED]
[REDACTED]. *See* CX0002846 at 846 (December 6, 2018, email from COSCO's Frank Grossi to COSCO employees, stating "[REDACTED]
[REDACTED].").

92. COSCO's Interrogatory Responses state that [REDACTED]
[REDACTED]
[REDACTED]. COSCO Resps. & Objs. to Interrog. No. 3, CX00002025 (Houghtalin Dep. Ex. 10) at 018.

Evergreen

93. [REDACTED]
[REDACTED].
Wang (Evergreen) Dep., CX00000773 at 37:18-38:4 ("[REDACTED]
[REDACTED]
[REDACTED].").

94. [REDACTED]
[REDACTED]
[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 ("[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”); Wang (Evergreen) Dep., CX00000773 at 37:11-17 (“[REDACTED]

[REDACTED]

[REDACTED]”).

95. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00003249

(Wang Dep. Ex. 3) at 249; Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 (“[REDACTED]

[REDACTED]

[REDACTED].”).

96. As a result, [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 153:9-19 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

97. [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 152:23-153:8

(“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]).

98.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] February 11, 2012 Email from Philip Wolfe (DCLI) to Tom Wang (Evergreen), CX00003779 at 779; *see also* Wang (Evergreen) Dep., CX00000773 at 227:16-228:9 (“... [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

Hapag-Lloyd

99.

[REDACTED]
Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 187:4-13.

100. In CCM pools, usage for MH movements defaults to Hapag-Lloyd's default provider, unless a motor carrier or BCO notifies CCM prior to requesting an alternative chassis provider. CX00003959 (Barattini Dep. Ex. 17) at 959.

101. Pursuant to the terms in Hapag-Lloyd's January 1, 2016, EUA with TRAC, [REDACTED]
[REDACTED]
Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 150:11-152:2; CX00004115 (Barattini Dep. Ex. 13) at 130; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 162:10-23 ([REDACTED])
[REDACTED]), 171:21-172:20; CX00002463 (Barattini Dep. Ex. 15) at 465 ([REDACTED])
[REDACTED]); 187:14-188:3; CX00003959 (Barattini Dep. Ex. 17) at 959 ("[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].").

102. [REDACTED]
[REDACTED]
[REDACTED]. CX00002459 at 460 (Barattini writes [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

HMM

103.

[REDACTED]
[REDACTED].
Compton (HMM) Dep., CX00000207 at 140:14-141:5 (“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].”); CX00004220 (Compton

Dep. Ex. 16) at 221 (“[REDACTED]

104.

[REDACTED]
[REDACTED]
[REDACTED]. *Id.* (“[REDACTED]

[REDACTED]
[REDACTED].”); Compton (HMM) Dep.,

CX00000207 at 141:13-18 (“[REDACTED]

105. [REDACTED]

[REDACTED]. Compton (HMM) Dep.,
CX00000207 at 134:21-135:8.

106. As a result of those negotiations, on November 30, 2017, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00004223 (Compton Dep. Ex. 15) at 226.

107. In deciding whether or not to grant a request for chassis choice for MH

movements, “[REDACTED]

[REDACTED]

[REDACTED].” HMM’s corporate witness confirmed that the

“[REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 135:17-136:4.

108. [REDACTED]

[REDACTED]

[REDACTED]. CX00004276 at

276, 283.

109. [REDACTED]

[REDACTED]

[REDACTED] CX00004243 at 243.

110. [REDACTED]

[REDACTED]

[REDACTED] CX00004267 at 267, 269.

111. [REDACTED]

[REDACTED]

[REDACTED] CX00004271 at 271-72; *see also* CX00004273 ([REDACTED])

[REDACTED]).

112. [REDACTED]

[REDACTED]

[REDACTED] CX00004216 at 216, 217 (emphasis in the original email).

113. [REDACTED]

[REDACTED]

[REDACTED] CX00004245

(Compton Dep. Ex. 18) at 245, 252-61 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

Maersk

114. [REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]. Weisberg (Maersk) Dep., CX00007709 at 50:23-51:6; CX00004705 (Weisberg Dep. Ex.

4) at 707 (“[REDACTED]

[REDACTED].”).

115. [REDACTED]

[REDACTED].” CX00004709 (Weisberg Dep. Ex. 12);

Weisberg (Maersk) Dep., CX00000709 at 103:6-104:23 ([REDACTED]

[REDACTED].)

116. [REDACTED]

[REDACTED] CX00004710 at 710.

117. [REDACTED]

[REDACTED]. See Weisberg (Maersk) Dep., CX00000709 at

101:25-102:18 [REDACTED]

[REDACTED]; CX00004720 (Weisberg Dep. Ex. 11) at 720 ([REDACTED]

[REDACTED].)

118. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004703 (Weisberg Dep. Ex. 15) at 703.

119. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 103:24-

104:8 ([REDACTED] [REDACTED])

[REDACTED]).

120. [REDACTED]

[REDACTED]. Weisberg (Maersk)

Dep., CX00000709 at 108:12-112:24; CX00004699 (Weisberg Dep. Ex. 13) at 700 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

121. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 113:18-115:15;

CX00004715 (Weisberg Dep. Ex. 14) at 715.

122. [REDACTED]

[REDACTED]. Weisberg (Maersk) Dep.,

CX00000709 at 115:3-8.

123. As of November 21, 2021, the CCM website identified Maersk's choice policy as being to not offer choice. Weisberg (Maersk) Dep., CX00000709 at 51:7-15. [REDACTED]

[REDACTED]
Weisberg (Maersk) Dep., CX00000709 at 51:16 ([REDACTED]).

MSC

124. [REDACTED]
Roveccio (MSC) Dep., CX00000799 at 180:15-19 ([REDACTED]
[REDACTED]”).

125. [REDACTED]
[REDACTED] Roveccio (MSC) Dep., CX00000799 at 37:19-38-7,
120:8-20.

126. [REDACTED]
[REDACTED]
[REDACTED]. Roveccio (MSC) Dep., CX00000799 at
35:15-25, 43:25-44:17.

127. Both the CUC and ECU are [REDACTED]
[REDACTED].” Roveccio (MSC) Dep., CX00000799 at 36:5-9.

128. [REDACTED]
[REDACTED]
[REDACTED].” Roveccio (MSC) Dep.,
CX00000799 at 52:3-11.

129. The per diem is “[REDACTED]
[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 52:23-16.

130. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 108:10-11; CX00002256 (Roveccio Dep. Ex.

15) at 256 (Roveccio: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]); Roveccio (MSC) Dep., CX00000799 at 116:24-117:7 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

131. [REDACTED]

[REDACTED]. CX00004578 (Roveccio Dep. Ex. 16) at 578 (Roveccio: “[REDACTED]

[REDACTED]

[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 130:21-131:9 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

132. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 38:4-21, 45:2-8.

133. [REDACTED]

[REDACTED]

[REDACTED]. CX00004549 (Roveccio Dep. Ex. 17) at 549 (“[REDACTED]

[REDACTED]

[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 134:22-135:2 (“ [REDACTED]

[REDACTED]

[REDACTED].”).

134. [REDACTED]

[REDACTED] Roveccio (MSC) Dep, CX00000799 at 134:14-21 ([REDACTED]

[REDACTED]).

135. [REDACTED] Roveccio (MSC) Dep.,
CX00000799 at 137:16-139:3; CX00004549 (Roveccio Dep. Ex. 17) at 549 ([REDACTED]
[REDACTED]).

136. [REDACTED]

[REDACTED]

[REDACTED]

CX00004549 (Roveccio Dep. Ex. 17) at 549; Roveccio (MSC) Dep., CX00000799 at 138:8-19.

137. [REDACTED]

[REDACTED]. Roveccio
(MSC) Dep., CX00000799 at 138:20-139:2.

ONE

138. [REDACTED]

[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep.,

CX00000544 at 49:9-13.

139. [REDACTED]. Armstrong (ONE)
(10/06/2021) Dep., CX00000544 at 93:2-12.

140. [REDACTED]
[REDACTED]. Armstrong (ONE)
(10/06/2021) Dep., CX00000544 at 50:2-4.

141. [REDACTED]
[REDACTED]
[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 50:17-23.

142. [REDACTED] Armstrong
(ONE) (10/06/2021) Dep., CX00000544 at 50:24-51:3.

143. [REDACTED]
[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 51:4-6.

144. [REDACTED]
[REDACTED]
Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 93:2-12.

145. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Armstrong (ONE) (10/06/2021) Dep.,
CX00000544 at 93:2-12.

146. [REDACTED]
[REDACTED]

[REDACTED] CX00005422 (Armstrong Dep. Ex. 7) at 423;
see also Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 95:6-14 (“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

147. [REDACTED]. CX00002468
(Armstrong Dep. Ex. 3) at 470 (“[REDACTED]
[REDACTED].”).

148. [REDACTED]
[REDACTED]” Armstrong (ONE)
(10/28/2021) Dep., CX00000606 at 111:7-11; *see also id.* at 126:23-127:7 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

149. [REDACTED]
[REDACTED] CX00002468 (Armstrong Dep. Ex. 3) at 468-69; Armstrong (ONE)
(10/06/2021) Dep., CX00000544 at 63:4-16.

150. [REDACTED]
[REDACTED] Armstrong (ONE) (10/28/2021) Dep., CX00000606
at 94:16-19; CX00005495 (Armstrong Dep. Ex. 22) at 495.

151. [REDACTED]

[REDACTED] CX00005493 (Armstrong Dep. Ex. 24) at 493; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 104:16-18.

152. [REDACTED]

CX00005482 (Armstrong Dep. Ex. 25) at 483; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 107:22-109:20.

153. [REDACTED]

CX00005500 (Armstrong Dep. Ex. 26) at 500; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 120:5-16.

154. [REDACTED]

[REDACTED] CX00005480 (Armstrong Dep. Ex. 27) at 480; CX00005478(Armstrong Dep. Ex. 28) at 478; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 122:15-125:15.

Wan Hai

155. [REDACTED]

. Chung (Wan Hai) Dep., CX00000304 at 22:17-21.

156. [REDACTED]

. Chung (Wan Hai) Dep., CX00000304 at 87:7-9; CX00004864, CCM Chassis Provider Matrix (Chung Dep. Ex. 9).

157. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]. Chung (Wan Hai) Dep., CX00000304 at 88:10-25 (“[REDACTED]”).

158. [REDACTED]
[REDACTED]. *Id.* at 88:25-89:7.

159. [REDACTED]
[REDACTED]
Id., at 89:19-90:12. (“[REDACTED]
[REDACTED]”).

Yang Ming

160. Yang Ming [REDACTED]
[REDACTED]. CX00002136 at 141,
Yang Ming Resps. & Objs. to Interrog. No. 3 (Micena Dep. Ex. 12); *see also* June 27, 2017
Email from Austin Chen (Yang Ming) to Ken Tock (CCM), CX00005920 at 920 (“[REDACTED]
[REDACTED]
[REDACTED]”).

161. Yang Ming’s Interrogatory Responses state that [REDACTED]
[REDACTED]
[REDACTED].” CX00002136 at
141, Yang Ming Resps. & Objs. to Interrog. No. 3 (Micena Dep. Ex. 12).

162. [REDACTED]
[REDACTED] *See, e.g.*, December 7, 2018 Email from Tony Micena (Yang Ming) to Ken Tock
(CCM), CX00002457 at 457 ([REDACTED]
[REDACTED]); *see also* Micena (Yang Ming) Dep., CX00000001 at 361:17-362:25.

163. [REDACTED]

[REDACTED] See, e.g., October 5, 2018 Email from Tony Micena (Yang Ming) to Will Douglas (IMC), CX00004460 at 460 (“[REDACTED]
[REDACTED]
[REDACTED]”).

164. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” CX00005859 (Micena Dep. Ex. 18) at 864;
see also Micena (Yang Ming) Dep., CX00000001 at 282:22-283:10, 376:13-377:12 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

165. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Micena (Yang Ming) Dep., CX00000001 at 383:5-384:11; CX00005832(Micena Dep. Ex. 25) at 837.

ZIM

166. ZIM generally allowed motor carriers and BCOs to exercise chassis choice in MH movements.

167. In the record, there are [REDACTED]
[REDACTED] ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

168. Of those [REDACTED] ZIM Interrogatory No. 3 (Messing Dep. Ex. 16), CX00002148 at 152.

169. The sole non-approval arose when the merchant sought to exercise chassis choice to TRAC, who was already ZIM’s chassis provider, and so “[REDACTED]
[REDACTED]” Messing (ZIM) Dep., CX00000260 at 129:23-130:3; ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 152.

C. Motor Carriers and BCOs Are Increasingly Exercising Chassis Choice.

170. [REDACTED]
[REDACTED]. See CX00006145, “Choie package data.xlsx” spreadsheet.

171. [REDACTED]
[REDACTED]. *Id.*

IV. RESPONDENT OCEAN CARRIERS’ CONTRACTS WITH IEPS LINK CH RATES TO MH VOLUME.

A. Ocean Carriers’ Contracts with IEPs Link CH/MHE Rates to MH Volume.

CMA

172. [REDACTED]
[REDACTED]. Fentress (CMA) Dep., CX0000916 162:4-6; 169:17-21.

173.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002736 (Fentress Dep. Ex. 13) at 743.

174.

[REDACTED]

[REDACTED] *Id.* at 744.

[REDACTED]

[REDACTED] as shown below:

[REDACTED]

Id. at 644; Fentress (CMA) Dep., CX0000916 at 163:4-164:24 (“... [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

175.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002686

(Fentress Dep. Ex. 14) at 707; Fentress (CMA) Dep., CX0000916 171:21-172:20 (“[REDACTED]

[REDACTED]

[REDACTED]”).

176.

[REDACTED]

[REDACTED]

[REDACTED]

CX00002686 (Fentress Dep. Ex. 14) at 686. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

177.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* [REDACTED], CX00002586 (Fentress Dep. Ex. 16)

at 586, 602-08.

178. [REDACTED]

[REDACTED]. *Id.* at 589.

179. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 617.

180. [REDACTED]

[REDACTED] *See* [REDACTED]

[REDACTED], CX00002582 at 582, 585.

181. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* [REDACTED], CX00002536 at

554-562.

182. [REDACTED]

[REDACTED]. *Id.* at 541.

183. [REDACTED]

[REDACTED]

[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at

633. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

184. [REDACTED]

[REDACTED].

[REDACTED]

Id.; Fentress (CMA) Dep., CX00000916 at 210:11-211:2 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

185. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002629

(Fentress Dep. Ex. 18) at 635; Fentress (CMA) Dep., CX00000916 at 211:11-25 ([REDACTED])

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

186. [REDACTED]

[REDACTED]
[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at 634.

187. Pursuant to the December 3, 2019 CMA/TRAC CUA:

[REDACTED]

December 3, 2019 CMA/TRAC CUA, CX00002536 at 551 (emphasis in original).

188. Pursuant to the December 3, 2019, CMA/TRAC CUA [REDACTED]

[REDACTED]:

[REDACTED]

Id. at 599–601.

189. Pursuant to the December 3, 2019, CMA/TRAC CUA, [REDACTED]

Id. at 570.

190. [REDACTED]

[REDACTED]. See March 1, 2021, Amendment, CX00002521 at 521–24.

COSCO

191. [REDACTED]

[REDACTED]. See May 1, 2016, COSCO/TRAC CUA, CX00003121 (Houghtalin Dep. Ex. 12) at 121, 131; *see also* Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 193:5-25.

192. [REDACTED]

[REDACTED]. *Id.* at 838; Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 194:9-19.

193. [REDACTED]

[REDACTED]. Houghtalin (COSCO) Dep., CX00000337 at 188:2-10; *see also* CX00002818 (Houghtalin Dep. Ex. 13).

194.

” CX00002826 (Houghtalin Dep. Ex. 14) at 826-27;
see also Houghtalin (COSCO) Dep., CX00000337 at 225:22-226:23.

195.

” CX00002826 (Houghtalin Dep. Ex. 14) at 832; *see also* Houghtalin (COSCO)
Dep., CX00000337 at 231:2-232:13.

196.

CX00002886 (Houghtalin Dep. Ex. 15) at 889; *see also* Houghtalin
(COSCO) Dep., CX00000337 at 244:16-246:16 (

”).

197.

[REDACTED]
[REDACTED]
[REDACTED]. See July 1, 2018, COSCO/DCLI CUA, CX00002796 (Houghtalin Dep. Ex. 16) at 796, 798, 808; *see also* COSCO SS List_v2, CX00003117 (Houghtalin Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-247:25, 250:12-252:5, 262:6-265:12.

198. [REDACTED]
[REDACTED]. *Id.* at 796; *see also* Houghtalin (COSCO) Dep., CX00000337 at 247:17-25 ([REDACTED]
[REDACTED]).

199. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 809–811; *see also* Houghtalin (COSCO) Dep., CX00000337 at 186:2-25 (“[REDACTED]
[REDACTED]”), 253:3-261:22 ([REDACTED]
[REDACTED]), 259:2-17 ([REDACTED]
[REDACTED]).

200. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 809, 811.

201.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 811; *see also* Houghtalin (COSCO) Dep., CX00000337 at 259:18-261:22.

202.

[REDACTED]
[REDACTED]
[REDACTED]. *See* July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 782, 792; *see also* Houghtalin (COSCO) Dep., CX00000337 at 275:12-276:17.

203.

[REDACTED]
[REDACTED]. *Id.* at 782; *see also* Houghtalin (COSCO) Dep., CX00000337 at 276:18-24.

204. Pursuant to the July 1, 2018, COSCO/TRAC CUA,

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 786.

205.

[REDACTED]
[REDACTED].” CX00003037 (Houghtalin Dep. Ex. 23) at 037; *see also* Houghtalin (COSCO) Dep., CX00000337 at 298:4-16.

206.

[REDACTED]
[REDACTED]. *See* April 1, 2020, COSCO/TRAC Amendment, CX00002813 (Houghtalin Dep. Ex. 22) at 813; *see also* Houghtalin (COSCO) Dep., CX00000337 at 290:8-291:7.

207.

[REDACTED]
[REDACTED]. *Id.*; *see also* Houghtalin (COSCO) Dep., CX00000337 at 291:20-24.

Evergreen

208.

[REDACTED]
[REDACTED]. *See* November 28, 2016, Evergreen/TRAC PSA, CX00003550.

209.

[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 550.

210.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* November 28, 2016, Evergreen/TRAC CUA, CX00003532 at 532, 535.

211. [REDACTED]

[REDACTED]. *Id.* at 535.

212. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”

Id. at 538.

213. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at

538-39.

214. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

215. [REDACTED]

[REDACTED]

[REDACTED]

Id.

216. [REDACTED]

[REDACTED]. *See*

December 1, 2017 Evergreen/TRAC PSA, CX00003639.

217. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 640.

218. [REDACTED]

[REDACTED]

[REDACTED]. *See* December 1, 2017

Evergreen/TRAC contract, CX00003226 (Wang Dep. Ex. 11) at 226, 244.

219. [REDACTED]

[REDACTED]. *Id.* at 230.

220. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

221. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 234.

222. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at

234-35.

223. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

224. [REDACTED]
[REDACTED]
[REDACTED]
Id.

225. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See*
October 22, 2019, Evergreen/DCLI EGA CUA, CX00003784 (Wang Dep. Ex. 12) at 784, 801.

226. [REDACTED]
[REDACTED]. *Id.* at 787.

227. [REDACTED]
[REDACTED]
[REDACTED]. *See* October 22, 2019,
Evergreen/DCLI EMC Amendment No. 1, CX00003815.

228. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 754, 771.

229. [REDACTED]

[REDACTED]. *Id.* at 757.

230. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 759.

231. [REDACTED]

[REDACTED]. *Id.* at

775.

232. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

233. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

234. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

235. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

236. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

237. Pursuant to the October 22, 2019, Evergreen/DCLI EMC CUA:

[REDACTED]

Id. at 760 (emphasis added).

238. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 765.

Hapag-Lloyd

239. [REDACTED]

[REDACTED]

[REDACTED] See November 28, 2012,
Hapag-Lloyd/TRAC PSA, CX00004036 at 036.

240. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See December 21, 2012, Hapag-Lloyd/TRAC CUA, CX00004010
(Barattini Dep. Ex. 7) at 010, 021; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep.,
CX00000654 at 103:11-18 ([REDACTED]).

241. [REDACTED]

[REDACTED] *Id.* at 010.

242. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at
019.

243. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 012; *see also* Barattini (Hapag-Lloyd)
(10/01/2021) Dep., CX00000654 at 104:3-15 (confirming meaning of contractual language),
105:9-18 ([REDACTED]).

244.

[REDACTED]

[REDACTED]

[REDACTED]. See Nov. 28, 2012 Hapag-Lloyd/DCLI CPA, CX00003993

at 995-96.

245.

[REDACTED]. *Id.* at

996-97.

246.

[REDACTED]

[REDACTED]

[REDACTED] See December 21, 2012,

Hapag-Lloyd/DCLI CUA, CX00004049 at 049.

247.

[REDACTED]. *Id.*

248.

[REDACTED]

[REDACTED] *Id.*

249.

[REDACTED]

[REDACTED]

Id.

250. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 049-50.

251. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 058.

252. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 050.

253. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

254. [REDACTED]

[REDACTED] *Id.* at 058.

255. [REDACTED]

[REDACTED] *See*

January 1, 2013, Hapag-Lloyd/Flexi-Van CUA, CX00004060 (Barattini Dep. Ex. 8) at 060.

256. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See* January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129, 142.

257. [REDACTED]

[REDACTED] *Id.* at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 148:6-9 (confirming term of agreement).

258. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

CX00004101 (Barattini Dep. Ex. 9) at 113-14.

259. [REDACTED]

[REDACTED]

[REDACTED] *See* 10/01/2017 Hapag-Lloyd/DCLI Amendment, CX00004086 (Barattini Dep. Ex. 10) at 086.

260. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 128:21-129:4. [REDACTED]

[REDACTED]

261. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] October 1, 2017, Hapag-Lloyd/DCLI Amendment,
CX00004086 (Barattini Dep. Ex. 10) at 086; *see also* Barattini (Hapag-Lloyd) (10/01/2021)

Dep., CX00000654 at 129:5-24 ([REDACTED])

[REDACTED]).

262. [REDACTED]

[REDACTED]

[REDACTED]. *See*

October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 894.

263. [REDACTED]

[REDACTED]. *Id.*

264. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 206.

265. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See January 1, 2019 Hapag-Lloyd/TRAC CUA, CX00003906 (Coates Dep. Ex. 7) at 906, 922.

266. [REDACTED]

[REDACTED] *Id.* at 906.

267. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id. at 912; see also CX00003893 (Barattini Dep. Ex. 21) at 893 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

HMM

268. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See June 19, 2013, HMM/DCLI CPA, CX00004382 (Compton Dep. Ex. 8) at 384.

269. [REDACTED]. *Id.* at 386.

270. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

271. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See June 19, 2013, HMM/DCLI CUA,

CX00004416 at 416, 423-24.

272. [REDACTED]

[REDACTED] *Id.* at 417; see also CX0004382 (Compton Dep. Ex. 8) at 386.

273. [REDACTED]

[REDACTED]

[REDACTED] June 19,

2013 HMM/DCLI CUA, CX00004382 at 418.

274. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004350 (Compton Dep. Ex. 10) at 351-52 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

275. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 354; *see also* Compton (HMM) Dep.,
CX00000207 at 102:5-103:4 ([REDACTED]
[REDACTED]).

276. [REDACTED]

[REDACTED]

[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 370, 372.

277. [REDACTED]

[REDACTED] *Id.* at 373 (“[REDACTED]

[REDACTED]

[REDACTED]”).

278. [REDACTED]

[REDACTED].” *Id.* at

370, 372-73 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

279. [REDACTED]

[REDACTED]

[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 379.

280. [REDACTED]

[REDACTED]

[REDACTED].” *Id.*

281. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 380; *see also* Compton (HMM) Dep., CX00000207 at 94:23-95:14.

282. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 380-

81.

283. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

284. [REDACTED]

[REDACTED] *See* August 11, 2017

HMM/DCLI Amendment, CX00004329 at 329.

285. [REDACTED]
[REDACTED]
[REDACTED]. CX00004191 (Compton Dep. Ex. 12) at 191 (“[REDACTED]
[REDACTED]
[REDACTED]”).

286. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. See November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 193, 202-03.

287. [REDACTED]
[REDACTED]. *Id.* at 194.

288. Pursuant to the November 30, 2017 HMM/DCLI CUA:
[REDACTED]
Id. at 195; see also Compton (HMM) Dep., CX00000207 at 109:15-23, 110:8-14 (“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

289. Pursuant to the November 30, 2017 HMM/DCLI CUA:

[REDACTED]

Id.

290. [REDACTED]

[REDACTED]

[REDACTED]. See January 1, 2020 HMM/TRAC

CUA, CX00004208 at 208, 210.

291. [REDACTED]

[REDACTED] *Id.* at 208.

292. Pursuant to the January 1, 2020 HMM/TRAC CUA:

[REDACTED]

Id. at 211.

Maersk

293. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

See January 1, 2015, Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 613, 630-35.

294.

Id. at 613.

295.

Id.

296.

” *Id.* at 616.

297. Pursuant to the January 1, 2015 Maersk/DCLI CUA:

Id.; see also Weisberg (Maersk) Dep., CX00000709 at 54:18-56:25 (

298. Pursuant to the January 1, 2015 Maersk/DCLI CUA:

January 1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 616; see also Weisberg (Maersk) Dep., CX00000709 at 58:20-59:5 (

299. Pursuant to the January 1, 2015 Maersk/DCLI CUA, [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. *Id.* at 621; *see also* Weisberg (Maersk) Dep., CX00000709 at 60:7–62:6

([REDACTED]
[REDACTED]
[REDACTED]).

300. [REDACTED]

[REDACTED]

[REDACTED] *See* March 14, 2018, Maersk/DCLI Amendment,
CX00004644 (Weisberg Dep. Ex. 6) at 644.

301. [REDACTED]

[REDACTED]. *Id.*; *see also* Weisberg (Maersk) Dep.,
CX00000709 at 66:12-18.

302. [REDACTED]

[REDACTED] March 14, 2018
Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 645.

³ [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00004613 at 621.

303. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See July 1, 2017 Maersk/TRAC

CUA, CX00004679 at 679, 682.

304. [REDACTED]

[REDACTED] *Id.* at 679.

305. [REDACTED] Weisberg

(Maersk) Dep., CX00000709 82:8-20.

306. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 82:23-83:6.

307. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See July 1, 2018 Maersk/TRAC

CUA, CX00004652 (Weisberg Dep. Ex. 9) at 653, 655.

308. [REDACTED]

[REDACTED] *Id.* at 653.

MSC

309. [REDACTED]

[REDACTED] See March 26, 2015 MSC/DCLI CPA,

CX00004466 (Roveccio Dep. Ex. 20) at 466; Roveccio (MSC) Dep., CX00000799 at 150:20-151:6.

310.

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 151:7-10.

311.

[REDACTED]. CX00004466 (Roveccio Dep. Ex. 20) at 468.

312.

[REDACTED]. *Id.* at 469.

313.

[REDACTED]. *Id.* at 470.

314.

[REDACTED]. *Id.* at

471.

315.

[REDACTED]. *See* Roveccio (MSC) Dep., CX00000799 at 154:5-155:6; March 26, 2015

MSC/DCLI CUA, CX00004551 (Roveccio Dep. Ex. 21) at 551, 564-66.

316. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 553.

317. [REDACTED]. Roveccio (MSC) Dep.,
CX00000799 at 155:21-23.

318. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep.,
CX00000799 at 160:22-161:6; CX00004551 (Roveccio Ex. 21) at 567-68.

319. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 567; Roveccio (MSC) Dep., CX00000799 at 160:4-21.

320. [REDACTED].

CX00004551 (Roveccio Dep. Ex. 21) at 558.

321. Under this provision,

[REDACTED]

Id.; Roveccio (MSC) Dep., CX00000799 at 162:3-163:5.

322. [REDACTED]

[REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 162:14-163:13.

323. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 163:14-21.

324. [REDACTED]

[REDACTED]. CX00004551

(Roveccio Dep. Ex. 21) at 558; *see also* Exhibit C, *id.* at 577.

325. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 164:18-165:5; CX00004551 (Roveccio Dep.

Ex. 21) at 558.

326. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 165:6-17;
CX00004551 (Roveccio Dep. Ex. 21) at 558.

327. [REDACTED]

[REDACTED]

Roveccio (MSC) Dep., CX00000799 at 165:18-166:4; CX00004551 (Roveccio Dep. Ex. 21) at
558.

328. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 166:5-10; CX00004551

(Roveccio Dep. Ex. 21) at 558.

329. [REDACTED]

[REDACTED]. Roveccio (MSC)

Dep., CX00000799 at 166:11-18; CX00004551 (Roveccio Dep. Ex. 21) at 558.

330. [REDACTED]. CX00004578 (Roveccio Dep. Ex. 16) at 578 ([REDACTED])

[REDACTED]); Roveccio (MSC)

Dep., CX00000799 at 130:21-131:9 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

ONE

331. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See March 1, 2018 ONE/TRAC CUA, CX00005466 at 466, 469.

332. [REDACTED]

[REDACTED]. *Id.* at 466.

333. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; see also March 1, 2018 ONE/TRAC GTC,

CX00005429 (Armstrong Dep. Ex. 5).

334. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005429 (Armstrong Dep. Ex. 5) at 433.

335. [REDACTED]

[REDACTED] *Id.*

336. [REDACTED]

[REDACTED] *Id.*

337. [REDACTED]

[REDACTED] *Id.*

338. [REDACTED]

[REDACTED] *Id.*

339. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

340. [REDACTED]

[REDACTED]

[REDACTED]. CX00005414 at 414; *see also* CX00005440 at 442 ([REDACTED]

[REDACTED]).

341. [REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]. CX00005440 at 442 ([REDACTED]
[REDACTED]
[REDACTED]).

342. [REDACTED]
[REDACTED]. CX00005445 at 445-47 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

343. [REDACTED]
[REDACTED]. See June 1, 2020 ONE/TRAC
amendment, CX00005396 at 396.

344. [REDACTED]
[REDACTED]. *Id.* at
396, 399.

345. [REDACTED]
[REDACTED]. *Id.*
at 396.

346. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. See June 1, 2020 ONE/FLVI CUPA, CX00005382 (Armstrong Dep. Ex. 11) at 382.

Wan Hai

347.

[REDACTED]

[REDACTED]. See February 1, 2016

Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 777.

348.

[REDACTED]. *Id.*

349.

[REDACTED] See

February 1, 2017 Wan Hai/TRAC Amendment, CX00005803 (Chung Dep. Ex. 6) at 803.

350.

[REDACTED]. *Id.*; Chung (Wan Hai) Dep.,

CX00000304 at 64:24-65:3.

351.

[REDACTED]

[REDACTED]

[REDACTED] CX00005803 (Chung Dep. Ex. 6) at 804.

352.

[REDACTED]

[REDACTED]

[REDACTED]

4

[REDACTED] *Id.* at 804.

[REDACTED]. *Id.* at 806; Chung (Wan Hai) Dep., CX00000304 at 66:23-67:19 ([REDACTED])

[REDACTED]

[REDACTED]).

353. [REDACTED]. Chung (Wan Hai) Dep., CX00000304 at 66:5-8.

354. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See* April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 789, 798.

355. [REDACTED]

[REDACTED]. *Id.* at 789; Chung (Wan Hai) Dep., CX00000304 at 74:20-75:8.

356. [REDACTED]

[REDACTED]. CX00005789 (Chung Dep. Ex. 7) at 811; Chung (Wan Hai) Dep., CX00000304 at 75:24-76:6 ([REDACTED])

[REDACTED]).

357. [REDACTED]

[REDACTED] *See* July 1, 2021 Wan Hai/TRAC Amendment, CX00005771 (Chung Dep. Ex. 8) at 771.

358. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 773; Chung (Wan Hai) Dep., CX00000304 at 77:18-78:16.

Yang Ming

359. [REDACTED]

[REDACTED]

[REDACTED]. See October 1, 2013 Yang Ming/TRAC CUA, CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX00000001 at 191:14-193:25.

360. [REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX00000001 at 194:2-10.

361. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 035-36; *see also* Micena (Yang Ming) Dep., CX00000001 at 205:21-212:23, 226:11-16 ([REDACTED])

[REDACTED]).

362. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00006027 (Micena Dep. Ex. 13) at 035; *see also* Micena (Yang Ming) Dep., CX00000001 at 205:21-211:19 ([REDACTED])

[REDACTED]

[REDACTED]
[REDACTED]).

363. [REDACTED]
[REDACTED]
[REDACTED]. See May 1, 2014 Yang Ming/TRAC COCP
CUA, CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang Ming) Dep.,
CX000000001 at 216:3-218:9.

364. [REDACTED]
[REDACTED]. CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang
Ming) Dep., CX000000001 at 218:10-19.

365. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]⁵ CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena
(Yang Ming) Dep., CX000000001 at 223:3-224:16, 226:5-10, 228:10-20 ([REDACTED]
[REDACTED]
[REDACTED]).

366. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

⁵ [REDACTED]
[REDACTED]. CX00006013 (Micena Dep. Ex. 14) at 022.

[REDACTED] CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena (Yang Ming) Dep., CX000000001 at 228:21-229:22.

367. [REDACTED]

[REDACTED]

[REDACTED] *See* May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 987; *see also* Micena (Yang Ming) Dep., CX000000001 at 388:5-390:10.

368. [REDACTED]

[REDACTED]. CX00005987 (Micena Dep. Ex. 28) at 987.

369. [REDACTED]

[REDACTED]

[REDACTED].⁶ *Id.* at 996.

370. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.*; *see also* CX00005922 (Micena Dep. Ex. 15) at 922-23 ([REDACTED])

[REDACTED]

[REDACTED]); *see*

also Micena (Yang Ming) Dep., CX000000001 at 245:8-246:13, 393:5-396:11 ([REDACTED])

[REDACTED]

⁶ [REDACTED]
[REDACTED] *See* May 1, 2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 991.

[REDACTED]

[REDACTED]

371. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 859, 871; *see also* Micena (Yang Ming) Dep., CX000000001 at 277:10-278:11 ([REDACTED]).

372. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

CX00005859 (Micena Dep. Ex. 18) at 859–60, 872–85; *see also* Micena (Yang Ming) Dep., CX000000001 at 278:12-279:15.

373. [REDACTED]

[REDACTED]. *Id.* at 881–82.

374. [REDACTED]

[REDACTED]. See

February 1, 2018 Yang Ming/TRAC amendment. CX00005808 (Micena Dep. Ex. 19) at 820.

375. [REDACTED]

[REDACTED]. *Id.* at 822–23.

376. [REDACTED]

[REDACTED] *See* January 1, 2019 Yang Ming/TRAC amendment, CX00005940 (Micena Dep. Ex. 20) at 940.

377. [REDACTED]

[REDACTED]
[REDACTED]. CX00005935 (Micena Dep. Ex. 22) at 935.

378. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

379. [REDACTED]

[REDACTED]. *Id.* at 936.

380. [REDACTED]

[REDACTED]. *Id.* at 939.

381. [REDACTED]

[REDACTED]
[REDACTED]. *Id.* at 937; *see*

also Micena (Yang Ming) Dep., CX00000001 at 189:2-190:22, 322:8-324:18, 325:23-326:4 ([REDACTED])

[REDACTED]

[REDACTED]),
328:5-20.

382. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00005901 (Micena Dep. Ex. 8) at 904; *see also* Micena (Yang
Ming) Dep., CX00000001 at 329:13-331:6 ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

ZIM

383. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *See* March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18)
at 040, 043; Messing (ZIM) Dep., CX00000260 at 138:16-139:11.

384. [REDACTED]
[REDACTED]

[REDACTED]. *See* March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040, 044-70.

385. [REDACTED]

[REDACTED]. *Id.* at 040-41.

386. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*; Messing (ZIM) Dep., CX00000260 at 152:7-153:14.

387. Pursuant to the March 1, 2016 ZIM/TRAC CUA MH Incentive Provision:

[REDACTED]

March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040-41; Messing (ZIM) Dep., CX00000260 at 152:7-153:14.

388. [REDACTED]

[REDACTED] *See* September 1, 2017 ZIM/TRAC amendment, CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 161:3-19.

389. [REDACTED]

[REDACTED]. CX00006100 (Messing Dep. Ex. 19) at 102, 104; Messing (ZIM) Dep., CX00000260 at 164:5-8; *see also* CX00006040 (Messing Dep. Ex. 18) at 040, 043.

390. [REDACTED]

[REDACTED]. CX00006100 (Messing Dep. Ex. 19) at 100.

391. [REDACTED]

[REDACTED]
[REDACTED].

Id.; Messing (ZIM) Dep., CX00000260 at 165:15-168:16.

392. [REDACTED]

[REDACTED]
[REDACTED]

CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 166:11-16.

B. Each Ocean Carrier Designates One IEP as the “Exclusive,” “Default,” “Dedicated,” “Unitary Pool Concept Equipment Supplier,” “Recommended,” or “Preferred” Provider for CH Moves and/or for MH Moves.

393. Since at least 2012, Respondent ocean carriers have entered into agreements designating the IEP as the exclusive provider of chassis for CH movements and forbidding the ocean carrier from paying any other IEP for chassis. [REDACTED]

[REDACTED]
[REDACTED].

394. These agreements also include [REDACTED] terms explicitly related to MH movements. The ocean carrier agrees to designate the IEP as their “[REDACTED],” “[REDACTED],” or “[REDACTED]” (“[REDACTED]”). [REDACTED]
[REDACTED].

395.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report at ¶ 71.

CMA

396.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See*

January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 589.

397.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] December 3, 2019 CMA/TRAC CUA, CX00002536 (Fentress Dep. Ex. 19) at 539.

398.

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

399.

[REDACTED]

[REDACTED]

[REDACTED]

Id.

400. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

COSCO

401. Pursuant to the May 1, 2016 COSCO/TRAC CUA:

[REDACTED]

CX00003121 (Houghtalin Dep. Ex. 12) at 123.

402. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

403. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

404. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

405. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

406. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

407. [REDACTED]

[REDACTED]

[REDACTED]. CX00002782 (Houghtalin

Dep. Ex. 20) at 784.

408. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

409. Pursuant to the July 1, 2018 COSCO/TRAC CUA:

[REDACTED]

Id. at 785.

410. [REDACTED]

[REDACTED]

[REDACTED]. See July 1, 2021 COSCO/TRAC CUA, CX00003082 (Houghtalin Dep. Ex. 25) at 082, 092; *see also* Houghtalin (COSCO) Dep., CX00000337 at 323:17-324:13.

411. [REDACTED]

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 082; *see also* Houghtalin (COSCO) Dep., CX00000337 at 325:9-13.

412. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 082.

413. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 082, 092.

414. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Evergreen

415. [REDACTED]

[REDACTED]

[REDACTED] November 28, 2016

Evergreen/TRAC CUA, CX00003532 (Wang Dep. Ex. 11) at 539.

416. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

417. [REDACTED]

[REDACTED]

[REDACTED] December 1, 2017 Evergreen/TRAC

contract, CX00003226 at 237.

418. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

419. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 759.

420. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

421. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 760.

422. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

423. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

424. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Hapag-Lloyd

425. [REDACTED]

[REDACTED]

[REDACTED] December 21, 2012 Hapag-Lloyd/TRAC CUA, CX00004010

(Barattini Dep. Ex. 7) at 010.

426. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 010-11.

427. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 011.

428. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

429. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

[REDACTED]

December 21, 2012 Hapag-Lloyd/DCLI CUA, CX00004049 at 051.

430. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id.

431. [REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/TRAC CUA,
CX00004115 (Barattini Dep. Ex. 13) at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021)
Dep., CX00000654 at 149:16-150:10 ([REDACTED]).

432. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 129-30.

433. Pursuant to the January 1, 2016, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id. at 031; *see also* Barattini Dep. (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 151:11-152:8 ([REDACTED]).

434. [REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 031.

435. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2016 Hapag-Lloyd/DCLI CUA,
CX00004101 (Barattini Dep. Ex. 9) at 101.

436. [REDACTED]

[REDACTED]. *Id.*

437. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 103; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 123:7-124:19

([REDACTED]).

438. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 103.

439. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 896.

440. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

441. [REDACTED]

[REDACTED]

[REDACTED] January 1, 2019 Hapag-Lloyd/TRAC CUA,

CX00003906 (Coates Dep. Ex. 7) at 906, 922.

442. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 907.

443. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id.

444. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

HMM

445. [REDACTED]

[REDACTED] CX00004382

(Compton Dep. Ex. 8) at 416.

446. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

447. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417.

448. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417, 423.

449.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 418.

450.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 419.

451.

[REDACTED]

[REDACTED]

[REDACTED] November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 191.

452.

[REDACTED]

[REDACTED]

[REDACTED]

Id.

453.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

454. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 192.

455. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

456. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 194.

457. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Maersk

458. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January

1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep., CX00000709 at 59:9-21 ([REDACTED]).

459. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep., CX00000709 at 59:22-60:3 ([REDACTED]

[REDACTED]).

460. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]⁷ March 14, 2018

Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 646.

MSC

461. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004551 (Roveccio Ex. 21) at 554; Roveccio (MSC) Dep., CX00000799 at 157:7-19.

⁷ [REDACTED] CX00004644 (Weisberg Dep. Ex. 6) at 651.

462. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 180:15-19.

463. [REDACTED]

[REDACTED]
[REDACTED] CX00004551 (Roveccio Ex. 21) at 554.

464. [REDACTED]

[REDACTED]
[REDACTED] *Id.*

465. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] *Id.*; Roveccio (MSC) Dep., CX00000799 at 157:22-158:17.

ONE

466. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

CX00005429 (Armstrong (10/06/2021) Dep. Ex. 5) at 434.

467. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

Id.

468.

[REDACTED]

[REDACTED]

[REDACTED] CX00005382 (Armstrong (10/06/2021) Dep. Ex. 11) at 383.

469.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Wan Hai

470. Pursuant to the February 1, 2016 Wan Hai/TRAC CUA:

[REDACTED]

February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 778; Chung (Wan Hai) Dep., CX00000304 at 63:7-25.

471.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

Yang Ming

472. [REDACTED]

[REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 031.

473. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

474. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

475. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

476. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

477. [REDACTED]

[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 11) at 017.

478. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

479. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

480. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 018.

481. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

482. [REDACTED]

[REDACTED]

[REDACTED] May 1, 2014 Yang Ming/TRAC LABP CUA,

CX00005987 (Micena Dep. Ex. 28) at 992.

483. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

484.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

485.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

486.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

487. Pursuant to the January 1, 2017 Yang Ming/TRAC CUA:

[REDACTED]

January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 864.

488. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 832, 843; *see also* Micena (Yang Ming) Dep., CX00000001 at 344:17-345:13.

489. [REDACTED]

[REDACTED]

[REDACTED]. January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 832-33.

490. Pursuant to the January 1, 2020 Yang Ming/TRAC CUA:

[REDACTED]

Id. at 837.

ZIM

491. [REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 072; Messing (ZIM) Dep., CX00000260 at 156:7-14.

492. [REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, CX00006040

(Messing Dep. Ex. 18) at 072.

493. Pursuant to the March 1, 2016 ZIM/TRAC CUA:

[REDACTED]

Id. at 073; Messing (ZIM) Dep., CX00000260 at 157:5-158:13.

494. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, ,

CX00006040 (Messing Dep. Ex. 18) at 073.

495. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

C. The Lower CH Rates Paid By Respondent Ocean Carriers Are Subsidized By the Higher MH Rates Paid By Motor Carriers and BCOs.

496. Ocean carriers' contracts with IEPs for the provision of chassis to cover ocean carriers' CH movements frequently offer CH pricing terms that are explicitly linked to the ocean carriers' MH volume. Langenfeld Initial Expert Report, CX00001266 at ¶ 69; *see also supra*, Section IV.A.

497. CH pricing terms [REDACTED] have been linked to the ocean carriers' MH volume in the following ways:

- Providing for the renegotiation or direct increase of pricing terms if the ocean carriers' MH volume decreases, or the renegotiation or direct decrease of pricing terms if the ocean carriers' MH volume increases. *See supra* at ¶¶ [REDACTED] [REDACTED].
- Providing for a direct payment from the IEP to the ocean carrier based on the ocean carriers' MH volume. *See supra* at ¶¶ [REDACTED].
- Providing for incremental revenue sharing based on MH volume. *See supra* at ¶¶ [REDACTED] [REDACTED].
- Conditioning a discount on the CH rate on the ocean carriers' maintaining a specified MH volume. *See supra* at ¶¶ [REDACTED].
- Providing for the termination of the contract based on MH volume. *See supra* at ¶ [REDACTED].
- Including a term requiring the ocean carrier actively to try to generate more MH volume. *See supra* at ¶ [REDACTED].
- Setting the MH pricing in the contract. *See supra* at ¶ [REDACTED].

498. [REDACTED]

[REDACTED]
[REDACTED]. Langenfeld Initial
Expert Report, CX00001266 at ¶ 69.

499. [REDACTED]

[REDACTED]. *Id.* at ¶
70.

500. [REDACTED]

[REDACTED]. *See* June 2019
Maersk Slide deck (Weisberg Dep. Ex. 19), CX00004610 at 610 ([REDACTED]
[REDACTED]
[REDACTED]); *see also* Weisberg (Maersk) Dep., CX00000709 at 148:20-149:6 ([REDACTED]
[REDACTED]
[REDACTED]).

501. Indeed, [REDACTED]

[REDACTED]
[REDACTED]. *See*
CX00004610 (Weisberg Dep. Ex. 19) at 612 [REDACTED]
[REDACTED]).

502. [REDACTED]

[REDACTED]. *See id.* ([REDACTED]
[REDACTED]
[REDACTED]) (emphasis in original);

see also Weisberg (Maersk) Dep., CX00000709 at 153:24 -154:9 ([REDACTED]); Weisberg (Maersk) Dep. CX0000709 at 154:24-25 ([REDACTED]).

503. [REDACTED]

[REDACTED]. *See* CX00004610 (Weisberg Dep. Ex. 19) at 611 ([REDACTED]); *see also* Weisberg (Maersk) Dep., CX00000709 at 149:14-150:18 ([REDACTED]).

504. [REDACTED]

[REDACTED]. *See* CX00004610 (Weisberg Dep. Ex. 19) at 612 ([REDACTED]); Weisberg Dep., CX00000709 at 158:15-159:4 ([REDACTED]).

505. [REDACTED]

[REDACTED]. *See* Oct. 28, 2020 Maersk Notes from DCLI Meeting, CX00004673 (Weisberg Dep. Ex. 21) at 674-75.

506. [REDACTED]

[REDACTED] Nov. 5, 2015 Email from Brian Doyle (CMA), CX00002746 at 746.

507.

[REDACTED]
[REDACTED]
[REDACTED]. Aug. 13,
2019 Email from Bill Shea (DCLI) to Ed Aldridge (CMA/APL), CX00002654 at 657.

508.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Aug. 15, 2019 Email from John Mizarek (Flexi-Van) to Robert Cannizzaro (CMA),
CX00002732 at 733.

509.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

510.

[REDACTED]
[REDACTED]
[REDACTED] CX00002580
(Fentress Dep. Ex. 21) at 580 ([REDACTED]
[REDACTED]
[REDACTED]); *see also* Fentress
(CMA) Dep., CX00000916 at 227:5-16.

511.

[REDACTED]
[REDACTED]
[REDACTED] CX00002870 (Houghtalin Dep. Ex. 24) at

872; *see also* Houghtalin (COSCO) Dep., CX00000337 at 307:3-9 ([REDACTED])

[REDACTED]

[REDACTED]).

512. [REDACTED]

[REDACTED]

CX00002870 (Houghtalin Dep. Ex. 24) at 872; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 307:10-308:28 ([REDACTED])

[REDACTED]

[REDACTED]).

513. [REDACTED]

[REDACTED]

[REDACTED] Aug. 13, 2015 Email from Tom

Wang (Evergreen) to Robert L.T. Tan (Evergreen), CX00003307 (Wang Dep. Ex. 7) at 309.

514. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004084

(Barattini Dep. Ex. 11) at 084.

515. [REDACTED]

[REDACTED] Sept. 18, 2019 Email from Bill Shea (DCLI) to Robert

Milazzo (MSC), CX00004546 (Roveccio Dep. Ex. 28) at 547.

516. [REDACTED]

[REDACTED]

10/07/18 Email from Ronald Armstrong (ONE) to Dave Daly (ONE), CX00005418 (Armstrong Dep. Ex. 2) at 418.

517. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005422 (Armstrong Dep. Ex. 7) at 425-26; *see also* Armstrong (ONE)

(10/06/2021) Dep., CX00000544 at 85:8-12 ([REDACTED])

[REDACTED]

[REDACTED]).

518. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].” CX00005406 (Armstrong Dep. Ex. 4) at 412.

519. Flexi-Van’s [REDACTED]

[REDACTED]

[REDACTED] *Id.*; *see also*

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 70:2-71:3 ([REDACTED])

[REDACTED]), 69:19-74:1.

520. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005893 (Micena Dep. Ex. 23) at 893; *see also* Micena (Yang Ming) Dep., CX00000001 at 333:25-334:4 ([REDACTED]).

521. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00006125 at 130.

D. Chassis Choice is Not Available in Proprietary Pools, Giving IEPs Negotiating Leverage Over Motor Carriers and BCOs for MH Rates.

522. Respondents' industry expert stated that [REDACTED]

[REDACTED] Coates Initial Expert Report, CX00001524 at 539.

523. [REDACTED]

[REDACTED]

[REDACTED]. Coates Dep., CX00000871 at 152:9-17 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]"); *see also* June 5, 2020 Email from James Ford-Hutchinson (Flexport) to Daewon Kim (HMM), CX00004245 (Compton Dep. Ex. 18) at 250 ([REDACTED])

[REDACTED]

[REDACTED]).

524. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Coates Dep., CX00000871 at 169:10-

170:5 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”).

525. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002713 (Fentress Dep. Ex.

20) at 719; Fentress (CMA) Dep., CX00000916 at 222:17-223:24 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

E. MH Rates are Lower When Chassis Choice is Available, and Motor Carriers Have Paid Higher MH Rates Because of the Lack of Chassis Choice.

526. [REDACTED]. Langenfeld

Initial Expert Report, CX00001266 at ¶ 93, Exs. 1-2.

527. [REDACTED]

[REDACTED]. *Id.* at ¶ 58, Ex. 1A;

Intermodal Cartage Chassis Reports, CX00004463 (2017), CX00004464 (2018), CX00004465 (2019), CX00004459 (2020).

528. [REDACTED]

[REDACTED]. *Id.* at ¶ 58, Ex. 1B; Evans

Delivery Chassis Reports, CX00003155-206 (Jan. 2017 – Dec. 2020).

529. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶59, Exs. 2A-2B.

530. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 60;

CX00004936 at 960.

531. [REDACTED]
[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 60, n.89.

532. [REDACTED]
[REDACTED]. *Id.* at ¶ 60;
CX00003843 (Manning Dep. Ex. 22) at 843.

533. [REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also*
CX00004936 at 960.

534. [REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also id.*

535. [REDACTED]
[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 61.

536. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at ¶ 93, Exs. 10A-10D; *see also id.*, Exs. 11A-11C
([REDACTED]
[REDACTED]).

537. [REDACTED].
Id. at ¶ 88–89, 97, Ex. 9.

538. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 89, Ex. 9.

539. [REDACTED]

[REDACTED]. “The Chassis ‘CHOICE’ Dilemma” Presentation, CX00002160 (Wilson Dep. Ex. 10) at 161.

540. Supply chain members, including shippers and motor carriers, have complained about being charged higher prices for chassis provision. Langenfeld Initial Expert Report, CX00001266 at ¶ 104; *see also* CX00002436 (Wilson Dep. Ex. 9) at 438 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]); CX00004878

(Wilson Dep. Ex. 6) at 878 (“[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

541. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 86.

542. For example, [REDACTED]

[REDACTED]. *Id.*; *see also* Apr. 8, 2020

Email from Alan Schmid (TRAC) to Chris Giltz (Evans), CX00003220 at 222 ([REDACTED])

[REDACTED]
[REDACTED]).

543. [REDACTED]

[REDACTED]. Langenfeld

Initial Expert Report, CX00001266 ¶ 87; CX00002765 (Fehribach Dep. Ex. 3) at 766-77

([REDACTED]
[REDACTED]).

544. [REDACTED]

[REDACTED]
[REDACTED].

Langenfeld Initial Expert Report, CX00001266 at ¶ 87; DCLI Preferred Pricing Agreement,

CX00002757 at 757-58 ([REDACTED])

[REDACTED]
[REDACTED]).

545. [REDACTED]

[REDACTED]. Langenfeld Initial Report, CX00001266 at ¶ 90; *see also*

May 7, 2019 CCE Board Meeting Presentation, CX00002441 at 445 ([REDACTED])

[REDACTED]
[REDACTED]); Oct. 23, 2018 CCE Board Meeting Presentation, CX00005010 at 056 ([REDACTED])

[REDACTED]).

V. RESPONDENT OCEAN CARRIER CONTRACTS THAT REQUIRE USAGE OF IEP PROPRIETARY POOLS INSTEAD OF CCM INTEROPERABLE GRAY POOLS REDUCE COMPETITION FOR MH RATES AND INCREASE COSTS ON SUPPLY CHAIN STAKEHOLDERS.

A. Respondent Ocean Carriers Enter into Contracts That Transition Them Out of CCM Interoperable Pools and Into IEP Proprietary Pools.

CMA

546. [REDACTED]

[REDACTED]. See “DCLI Open Choice Process” presentation (June 8, 2016) directed to CCM, CX00002482 at 484; *see also* Oct. 30, 2015 DCLI Response to CMA’s Request for Proposal, CX00002736 (Fentress Dep. Ex. 13) at 740 ([REDACTED])

[REDACTED]
[REDACTED]).

547. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Fentress (CMA) Dep.,

CX00000916 at 171:4-20; CX00002621 at 623 ([REDACTED]);

“CCM Board Meeting” (May 18, 2016), CX00002510 at 510 (“[REDACTED]”).

548. [REDACTED]

[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED] See January 1, 2017 CMA/TRAC
CUA, CX00002586 (Fentress Dep. Ex. 16) at 618 ([REDACTED]

[REDACTED]); *see also* Fentress
(CMA) Dep., CX00000916 at 184:16-185:8 (“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

549. [REDACTED]

[REDACTED]. “CCM Board Meeting” (Sept. 23, 2016), CX00002498 at 509.

550. [REDACTED].
See CX00002495 at 496 ([REDACTED]

[REDACTED]); *see also* “CCM
Board Meeting” (May 18, 2016) CX00002510 at 510 ([REDACTED]

[REDACTED]).

551. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00002586 (Fentress Dep. Ex. 16) at 589, 602-08 ([REDACTED]

[REDACTED]

[REDACTED]).

552.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002536 (Fentress Dep. Ex. 19) at 540.

553.

[REDACTED]

[REDACTED]

[REDACTED]. Fentress (CMA)

Dep., CX00000916 at 218:10-219:7 (“

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

554.

[REDACTED]

[REDACTED]

[REDACTED]. CX00002533

(Basila Dep. Ex. 1) at 533-34 (“

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

555. [REDACTED]

[REDACTED]
[REDACTED]. Basila (CMA) Dep., CX00000534 at 14:12-16:15. ([REDACTED]
[REDACTED]
[REDACTED]
[REDACTED])

COSCO

556. [REDACTED]

[REDACTED]. Houghtalin (COSCO) Dep.,
CX00000337 at 188:22-189:2; *see also* July 1, 2018 COSCO/DCLI CUA, CX00002796
(Houghtalin Dep. Ex. 16) at 796, 798, 808; “COSCO SS List_v2”, CX00003117 (Houghtalin
Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-247:25 ([REDACTED]
[REDACTED]), 262:6-
265:12 ([REDACTED]
[REDACTED]).

557. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See Houghtalin (COSCO) Dep., CX00000337 at 265:6-12 (“[REDACTED]

[REDACTED]

[REDACTED]), 317:2-7 ([REDACTED]

[REDACTED]

[REDACTED]); *see also* CX00002851

(Houghtalin Dep. Ex. 18) at 851 (“[REDACTED]”), 861 ([REDACTED]

[REDACTED]

[REDACTED]).

558. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00003143 (Houghtalin Dep. Ex. 25) at 144; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 326:17-23 ([REDACTED]

[REDACTED]

[REDACTED]), 332:10-

333:2 (“[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

559. In its Answers to IMCC's First Set of Interrogatories, dated June 14, 2021, COSCO responded to Interrogatory No. 4 that [REDACTED]
[REDACTED]." COSCO Resps. & Objs. To Interrog. No. 4, CX00002025 (Houghtalin Dep. Ex. 10) at 032.

Evergreen

560. [REDACTED]
[REDACTED]
[REDACTED]

October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 771, n.1.

561. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. October 22, 2019 Evergreen/DCLI EMC Amendment No. 1, CX00003815 at 819.

562. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 819, n.1.

563. [REDACTED]

[REDACTED]

[REDACTED]. CX00003647 (Wang Dep. Ex.

14) at 647 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

564. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; Wang (Evergreen) Dep.,

CX00000773 at 192:11-21 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

565. [REDACTED]

[REDACTED]

[REDACTED]. CX00003652 (Wang Dep. Ex. 15) at 652-53.

([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

[REDACTED]

Id.

566. [REDACTED]

[REDACTED]. Wang (Evergreen)

Dep., CX00000773 at 163:10-164:9 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

Hapag-Lloyd

567. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See*

January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129, 142.

568. [REDACTED]

[REDACTED]

[REDACTED]. *See* Barattini (Hapag-Lloyd) (10/01/2021) Dep.,

CX00000654 at 147:3-7.

569. [REDACTED]

[REDACTED]. *See* Aug. 16, 2016

TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd)

(10/01/2021) Dep., CX00000654 at 189:5-15 ([REDACTED])

[REDACTED]).

570. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See*

January 1, 2017 Hapag-Lloyd/TRAC Amendment, CX00004089 at 090.

571. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 092-93, 097.

572. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 091-92.

573. [REDACTED]

[REDACTED]

[REDACTED]. *See* Barattini (Hapag-Lloyd) (10/01/2021) Dep,

CX00000654. at 194:5-11.

574. [REDACTED]

[REDACTED]

[REDACTED] August 16, 2016 TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 189:23-190:5.

HMM

575. [REDACTED]

[REDACTED].

CX00005239 (Wilson Dep. Ex. 14) at 262.

576. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]. CX00002491 (Compton Dep. Ex. 19) at 492; Compton (HMM) Dep.,
CX00000207 at 162:17-164:3; *see also* “Chassis Use Agreement” letter (Mar. 19, 2019)
CX00004212 at 214 (“[REDACTED]

[REDACTED]
[REDACTED].”).

577. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. CX00002491 (Compton Dep. Ex. 19) at 492.

578. [REDACTED]
[REDACTED]
[REDACTED]. Compton

(HMM) Dep., CX00000207 at 187:20-22.

579. [REDACTED]
[REDACTED]
[REDACTED] *Id.* at 163:21-164:3.

580. [REDACTED]
[REDACTED]
[REDACTED] CX00002491 (Compton Dep. Ex. 19) at

492; CX00002433 at 433 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

581. [REDACTED]

[REDACTED]
Compton (HMM) Dep., CX00000207 at 111:18-24.

Maersk

582. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep.,

CX00000709 at 46:17-21; 97:6-17.

MSC

583. [REDACTED]

Roveccio (MSC) Dep., CX00000799 at 89:25-90:4.

584. [REDACTED]

[REDACTED]. *Id.* at 188:20-189:7.

585. In March 2015, [REDACTED]

[REDACTED] *Id.* at 90:5-10.

586. [REDACTED]. *Id.* at 189:11-22.

587. [REDACTED] *Id.* at 189:16-

22.

588. [REDACTED]

[REDACTED]. *Id.* at 189:23-190:8.

ONE

589. [REDACTED]. CX00005382

(Armstrong Dep. Ex. 11) at 382-83; Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 104:3-12.

590. [REDACTED]. Armstrong (ONE) (10/28/2021)

Dep., CX00000606 at 155:13-22.

591. [REDACTED] *Id.*

592. [REDACTED]. *Id.* at 134:14-22.

593. [REDACTED]

[REDACTED] *Id.* at 104:13-15; CX00005382 (Armstrong Dep. Ex. 11) at 382-83.

594. [REDACTED]

[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 132:20-133:1.

Wan Hai

595. [REDACTED]

[REDACTED]

February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 787; April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 798.

596. [REDACTED]

[REDACTED]. July 1, 2021 Wan Hai/TRAC

Amendment, CX00005771 (Chung Dep. Ex. 8) at 773; *see also* Chung (Wan Hai) Dep.,
CX00000304 at 78:13-22 ([REDACTED])

[REDACTED]

[REDACTED]).

Yang Ming

597. [REDACTED]

[REDACTED]. Micena (Yang
Ming) Dep. CX00000001 at 186:21-25.

598. [REDACTED]

[REDACTED]

[REDACTED].

CX00005808 (Micena Dep. Ex. 19) at 814, 829; *see also* Micena (Yang Ming) Dep.,

CX00000001 at 289:22-290:4 ([REDACTED])

[REDACTED]

[REDACTED], 302:9-22 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

599. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005808 (Micena Dep. Ex. 19) at 829.

600. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 812, 829; *see also* Micena (Yang Ming) Dep. CX00000001 294:19-296:11 ([REDACTED]).

601. [REDACTED]

[REDACTED]

[REDACTED]. *See* CX00005808 (Micena Dep. Ex. 19) at 829; *see also* Micena (Yang Ming) Dep. CX00000001 at 297:21-298:9 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

602. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* CX00005914 (Micena Dep. Ex. 21) at 916; *see also* Micena (Yang Ming) Dep. CX00000001 312:18-313:3 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

603. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00005935 (Micena Dep. Ex. 22) at 936.

604. [REDACTED]

[REDACTED]

[REDACTED]. See Micena (Yang Ming) Dep. CX00000001 at

303:14-304:5 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]), 366:16-21 ([REDACTED])

[REDACTED]

[REDACTED]), 401:21-25 ([REDACTED])

[REDACTED]

[REDACTED]).

605. [REDACTED]

[REDACTED]. Micena (Yang Ming) Dep.

CX00000001 at 343:8-12.

606. Pursuant to the January 1, 2019 Yang Ming/TRAC Amendment:

[REDACTED]

[REDACTED]

January 1, 2019 Yang Ming/TRAC Amendment, CX00005940 at 940.

ZIM

607. [REDACTED] Messing (ZIM) Dep., CX00000260 at 141:22-142:8; CX00006040 (Messing Dep. Ex. 18) at 043.

608. [REDACTED]
[REDACTED] Messing (ZIM) Dep., CX00000260 at 143:14-17, 164:7-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED]
[REDACTED]).

609. [REDACTED]. Messing (ZIM) Dep., CX00000260 at 141:22-142:10; CX00006040 (Messing Dep. Ex. 18) at 043.

610. [REDACTED]
[REDACTED]. Messing (ZIM) Dep., CX00000260 at 164:17-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED]
[REDACTED]).

B. Respondent Ocean Carriers Agreed that Interoperable Gray Pools Benefit the Intermodal Supply Chain.

611. Each Respondent ocean carrier responded as follows to IMCC's Interrogatory No. 4 to identify the "benefits and costs of gray pools and interoperability[:]"

- a. Each Respondent ocean carrier "[REDACTED]
[REDACTED]
[REDACTED]." CMA Resps. & Objs. To Interrog. No. 4, CX00002013 (Fentress Dep. Ex. 27) at 018-20; COSCO Resps. & Objs. To Interrog. No. 4, CX00002025 (Houghtalin Dep. Ex. 10) at 030-32; Evergreen

Resps. & Objs. To Interrog. No. 4, CX00002038 (Wang Dep. Ex. 21) at 044-46; Hapag-Lloyd Resps. & Objs. To Interrog. No. 4, CX00002052 (Barattini (10/22/2021) Dep. Ex. 28) at 057-58; HMM Resps. & Objs. To Interrog. No. 4, CX00002065 (Compton Dep. Ex. 25) at 070-72; Maersk Resps. & Objs. To Interrog No. 4, CX00002077 at 082-84; MSC Resps. & Objs. To Interrog. No. 4, CX00002089 (Roveccio Dep. Ex. 13) at 094-96; ONE Resps. & Objs. To Interrog. No. 4, CX00002113 (Armstrong (10/28/2021) Dep. Ex. 30) at 118-20; Wan Hai Resps. & Objs. To Interrog. No. 3, CX00002125 at 129-31; Yang Ming Resps. & Objs. To Interrog. No. 4, CX00002136 (Micena Dep. Ex. 12) at 141-43; ZIM Resps. & Objs. To Interrog. No. 4, CX00002148 (Messing Dep. Ex. 16) at 153-55

b. “[REDACTED]
[REDACTED].” *Id.*

c. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*

d. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*

e. “[REDACTED]
[REDACTED].” *Id.*

- f. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*
- g. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*
- h. “[REDACTED]
[REDACTED]
[REDACTED].” *Id.*
- i. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*
- j. “[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].” *Id.*
- k. “[REDACTED].” *Id.*

612.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 075. [REDACTED]

[REDACTED]

[REDACTED]

Id.

[REDACTED]

Id.

613.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 98:5-25; *see also id.* at 99:11-16 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

614. [REDACTED]

[REDACTED]. CX00004227 (Compton Dep. Ex. 24) at 228-42 ([REDACTED]

[REDACTED]); Compton (HMM) Dep., CX00000207 192:18-24. [REDACTED]

[REDACTED]

Compton (HMM) Dep., CX00006153 at 154:16-25.

615. [REDACTED]

[REDACTED]. Wilson (CCM) Dep., CX00000490 at 100:6-19 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED])

616. [REDACTED]

[REDACTED]

[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 878. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] . *Id.* at 879.

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 117:20-118:12

([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

617.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED], OCEMA and CCM subsequently developed the “Interoperability Matters!” presentation, which describes the benefits of interoperable gray pools to intermodal supply chain stakeholders. CX00002221 (Wilson Dep. Ex. 11). Those benefits include:

- a. All chassis are available within a gray interoperable pool, obviating any requirement to reposition chassis between separate pool locations when an ocean carrier switches chassis providers. *Id.* at 226.
- b. Gray interoperable pools are managed by a neutral party, such as CCM, that does not own chassis itself, thereby fostering an “open competition” environment with “low barriers to entry” for chassis contributors to compete for ocean carrier business, as well as setting standards for chassis quality in the pool. *Id.* at 225.
- c. Gray interoperable pools allow shippers to carry less buffer stock because of more reliable cargo flows with “competitive chassis provision options.” *Id.* at 226.

- d. Gray interoperable pools allow railroads and rail ramp operators to use any chassis on-site, which could result in faster unloading of trains and require fewer chassis on the terminal. *Id.* at 227.
- e. Interoperable gray pools with chassis choice can provide motor carriers “the freedom to use the chassis of his choice on multiple container moves without having to unhook from the chassis,” and given the “broad range of chassis suppliers,” motor carriers can “negotiate better terms and lower rates” in an interoperable pool. *Id.* at 229.

618.

[REDACTED], the “Interoperability Matters!” presentation [REDACTED] describes “Who Is Impacted by Non-Interoperability,” as shown below.

COST CATEGORY	DESCRIPTION	WHO EXPERIENCES THESE COSTS?				
		OC	BCO	MC	EP	RR
Chassis Splits	When a trucker drops off a load or empty container for one ocean carrier and needs to backtrack to return the chassis in order to get a different chassis from a new location to pull for a different ocean carrier	✓	✓	✓		
Rail Demurrage	Storage charges at a rail ramp beyond the free time when chassis run short	✓	✓	✓		
Truck Detention	When a trucker spends more than the agreed wait time (usually 2 hours) at a facility for a chassis	✓	✓	✓		
Rail Flips	Moving a container from one chassis to another, usually at rail ramps	✓	✓	✓		
Dead Runs	A failed attempt to pick up a container at a rail ramp	✓	✓	✓		
Bare Repositioning	Moving a bare chassis from one location to another for redeployment purposes	✓	✓	✓	✓	
Extra Stock/Chassis	Additional chassis needed due to inefficient use of the fleet	✓	✓	✓	✓	
Reduced Truck Turns/Truck Capacity Impact	Reduced productivity of the truck due to overall inefficiency in the supply chain adds cost	✓	✓	✓		
Slower Rail L/D Ops	Lower productivity in rail L/D operations due to multiple chassis pools					✓
Extra Product Inventory	Extra product/inventory needed due to reduced velocity in the supply chain		✓			

Id. at 223.

619. In January 2014, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. CX00003856. [REDACTED]:

a. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 865.

b. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

c. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

d. [REDACTED]
[REDACTED]. *Id.*

e. [REDACTED]
[REDACTED]
[REDACTED]. *Id.* at
866.

620. [REDACTED]

[REDACTED]

CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED]

[REDACTED]

[REDACTED]. CX00004919

(Lawrence Dep. Ex. 3). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 919.

621. [REDACTED]

[REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 920.

622. [REDACTED]

[REDACTED] *Id.* [REDACTED]

[REDACTED]

[REDACTED] *Id.*

623. [REDACTED]

[REDACTED] *Id.* at 919; “CCM Pools

LLC (CCMP) Operations Manual Version 2.9” (Apr. 1, 2019), CX00002170; *see also supra* at

¶¶ 78-83.

C. Despite Their Agreement that Interoperable Gray Pools Benefit the Intermodal Supply Chain, Respondent Ocean Carriers Chose Their Short Term Financial Interests Instead.

624. The [REDACTED]

[REDACTED]

[REDACTED] CX00004878 (Wilson

Dep. Ex. 6) at 878. [REDACTED]

[REDACTED] *Id.* at 879; Wilson (CCM)

Dep., CX00000490 at 116:15-20 ([REDACTED])

[REDACTED]
[REDACTED]); Jan. 31, 2019 Email from Jeffrey Lawrence (OCEMA), CX00002253 at 253 (“I agree we need a strategy and that the [IEPs] are methodically, and with accelerated pace, carving away at CCM with homicidal intent.”).

625. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 879 ([REDACTED]
[REDACTED]). [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.*; CX00005065 (Wilson Dep. Ex. 6) at 091.

626. At [REDACTED]
[REDACTED]
[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at
880; *see also* June 25, 2019 Email from Michael Wilson (CCM), CX00002430 at 430 ([REDACTED]
[REDACTED]
[REDACTED]).

627. [REDACTED]
[REDACTED]
[REDACTED] Coates Dep., CX00000871 at 95:2-19.

628.

[REDACTED]

[REDACTED]. CX00004878 at 879-80 (“[REDACTED]

[REDACTED]).

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 083.

629.

[REDACTED]

[REDACTED]. CX00002235 at 243 (“[REDACTED]

[REDACTED]

[REDACTED]).

[REDACTED]

Id.

630.

[REDACTED]

[REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 289. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

631.

[REDACTED]

[REDACTED] CX00005118

(Wilson Dep. Ex. 13) at 121; *see also* Wilson (CCM) Dep., CX00000490 at 228:5-230:5

([REDACTED]

[REDACTED]

[REDACTED]).

632. [REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 036, 274.

633. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004872 (Wilson Dep. Ex. 14) at 875-76; Wilson (CCM) Dep., CX00000490 at

235:13-22 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

634. [REDACTED]

[REDACTED]. CX00002259 (Wilson Dep. Ex. 13) at 274.

635. [REDACTED]. CX00002335 at 356. [REDACTED]

[REDACTED] *Id.*; Wilson (CCM) Dep.,

CX00000490 at 41:6-18 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00002335 at 356.

636. [REDACTED]

[REDACTED]

[REDACTED].

Id. at 359.

VI. THE RESPONDENTS' CONDUCT HAS HARMED MOTOR CARRIERS, BCOS, AND THE SHIPPING PUBLIC.

A. The Closure of the COCP and the Fragmentation of the MCCP Have Resulted in Decreased Productivity and Increased Costs for Motor Carriers and Their Customers.

637.

. Rodrigue Initial Expert Report, CX00001362 at ¶ 129;

see also “2017 chi billing codes.xlsx”, CX00002780; “2020 chi billing codes.xlsx”,

CX00002781.

638.

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 130.

639. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 136.

640. [REDACTED]

[REDACTED]

[REDACTED] Lhotak (Reliable) Dep., CX00000477 at 180:7-10; *see also id.* at 181:3 ([REDACTED]).

641. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Lhotak (Reliable) Dep., CX00000477 at 182:16 – 183:23.

642. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶135; *see also* Glenn Fehribach Decl. (Apr. 25, 2022) at ¶¶ 5, 8.

643. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Rodrigue Initial Report at ¶ 138.

644. According to Reliable employee [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *Id.* at ¶ 139; *see*

also Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

645. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 86; *see also* Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 6, 8.

646. In Memphis, as of January 28, 2021, the interoperable MCCP accounted for [REDACTED] % of the intermodal chassis supply, with DCLI's non-interoperable proprietary pool accounting for

█% and TRAC’s non-interoperable proprietary pool accounting for █%. “CCE Board Meeting” presentation (Jan. 28, 2021), CX00002335 at 359.

647. █.

Rodrigue Initial Expert Report, CX00001362 at ¶ 144.

648. The Memphis region contains several large intermodal rail facilities, including at least two wheeled ramp facilities. *Id.*; *see also* “Intermodal Cartage_Chassis Usage 2019.csv,” CX00004463 (█

█

█

█); CX00004227 (Compton Dep. Ex. 24) at 228 (█

█).

649. █

█

█. Rodrigue Initial Expert Report, CX00001362 at ¶¶ 145-46; *see also* CX00005566 (Scott George Dep. Ex. 41) (█

█

█); Scott

George (TCW) Dep., CX00000640 at 144:16-145:19, 148:10-151:7.

650. █

█. Rodrigue Initial Expert Report, CX00001362 at ¶ 148; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

651. █

█

. Rodrigue

Initial Expert Report, CX00001362 at ¶¶ 148-49; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 7, 8.

652. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 150; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 10, 13.

653. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* “Chassi Splits.xlsx”, CX00006146.

654. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶ 13.

655. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 6-8, 13.

656. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 12, 13.

657. [REDACTED]

[REDACTED]. CX00003430

(Wang Dep. Ex. 9) at 434 (“Continued fragmentation is not in the long term best interest of OCEMA and the supply chain as a whole nor to any future consideration of a transaction involving CCM.”)

B. The Lack of Interoperable Chassis Pools Increases Supply Chain Inefficiencies and Costs.

658. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; *see also* CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 200:5-11.

659. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

660. The [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 200:12-201:19 ([REDACTED])

[REDACTED]).

661. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

662. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; CX00002221 (Wilson Dep. Ex. 11) at 229-230.

663. [REDACTED]

[REDACTED]. Rodrigue Initial Report at ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:17-20.

664. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

665. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as entities who experience costs from increased bare repositioning due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

666. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:21-203:10 ([REDACTED]

[REDACTED]

[REDACTED])

667. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

668. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as

entities who experience costs from the need to maintain additional equipment inventory due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

669. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:11-21.

670. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

671. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 201:20-202:5.

672. [REDACTED]

[REDACTED].
CX00005065 (Wilson Dep. Ex. 6) at 076.

673. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:22-204:11 ([REDACTED]).

674. [REDACTED]

[REDACTED].
CX00005065 (Wilson Dep. Ex. 6) at 076.

675. [REDACTED]

[REDACTED]. CX00005065

(Wilson Dep. Ex. 6) at 076-77.

676. [REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 145:6-11.

VII. LESS INTRUSIVE ALTERNATIVES TO THE CHALLENGED CONDUCT EXIST.

677. [REDACTED]

[REDACTED]. Rodrigue

Initial Expert Report, CX00001362 at ¶ 106; *see also supra*, Section III.B.

678. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 108; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000695 at 150:11-152:8; Micena (Yang Ming) Dep.

CX00000001 at 282:5-283:10; Messing (ZIM) Dep., CX00000260 at 159:15-160:12.

679. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report,

CX00001362 at ¶ 108.

680. A [REDACTED]

[REDACTED]. *Id.*; *see also* Lawrence (OCEMA) Dep.,

CX00000448 at 90:9-92:21 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

681. Respondents' industry expert testified that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Coates Dep., CX00000871 at 265:20-266:4.

VIII. THE MARKETS IN WHICH THE RESPONDENTS' CONDUCT SHOULD BE ASSESSED.

A. Relevant Product Markets

682. Chassis supplied by IEPs on a daily usage basis is a relevant product market because that is the basis by which both ocean carriers and motor carriers (and their customers) obtain chassis from chassis pools. Chassis at daily usage prices are obtained either through contracts with IEPs or at the IEPs posted daily prices. *See supra*, Sections IV.A., IV.B., IV.D.

683.

[REDACTED]
[REDACTED]
[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 40.

684.

[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at ¶¶ 34-37.

685.

[REDACTED]
[REDACTED]. See Coates Initial Expert Report, CX00001524 at 535; Rodrigue Initial Expert Report, CX00001362 at ¶ 31; *see also supra*, Section IV.A.

686.

[REDACTED]
[REDACTED]
[REDACTED]. See *supra*, Section IV.A.

687.

[REDACTED]
[REDACTED]
[REDACTED]. See, e.g., Fehribach (CPG) Dep., CX00000329 at 62:3- 63:3 ([REDACTED]); CX00002759 (Fehribach Dep. Ex. 7); CX00003208 (Giltz Dep. Ex. 8) ([REDACTED]); [REDACTED], Giltz (Evans Delivery) Dep., CX00000186 at 67:14-17; Lhotak (Reliable) Dep., CX00000477 at 39:14-40:13 ([REDACTED]); [REDACTED]; Evergreen Resps. & Objs. To Interrog. No. 6 (Wang Dep.

Ex. 21), CX00002038 at 047-48; *see also* Langenfeld Initial Expert Report, CX00001266 at ¶¶ 41, 51.

688. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 41.

689. [REDACTED]

[REDACTED]. *Id.* at ¶¶ 62-67.

690. In particular, [REDACTED]

[REDACTED]. *Id.* at ¶ 44.

691. [REDACTED]

[REDACTED].
Langenfeld Initial Expert Report, CX00001266 at ¶ 55; Coates Initial Expert Report, CX00001524 at 542.

692. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 46.

693.

[REDACTED]

[REDACTED]. *Id.* at ¶ 47; Coates Initial Expert Report, CX00001524 at 554.

- i. **There are significant financial and practical barriers to motor carrier substitution of owned or leased chassis for daily rental chassis.**

694.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 48.

695.

A [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report,

CX00001266 at ¶ 49; Giltz (Evans Delivery) Dep., CX00000186 at 160:20-162:20; Scott George (TCW) Dep., CX00000640 at 152:7-154:8.

696. Respondent's industry expert agreed

[REDACTED]

[REDACTED]. Coates Initial Expert Report, CX00001524 at 538.

697.

[REDACTED]

[REDACTED]:

[REDACTED]

Id.; see also Coates Dep., CX00000871 at 172:17-23 ([REDACTED])

[REDACTED]

[REDACTED]).

698.

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 55.

699.

[REDACTED]

[REDACTED]. *Id.* at ¶ 49; Manning Dep., CX00000247 at 157:6-159:21, 166:7-22; Giltz (Evans Delivery) Dep., CX00000186 at 161:3-16.

700.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶

49.

701. [REDACTED]

[REDACTED]. *Id.* at ¶ 50; CX00002586 (Fentress Dep. Ex. 16) at 589.

702. [REDACTED]

[REDACTED].
Langenfeld Initial Expert Report, CX00001266 at ¶ 50; Manning Dep., CX00000247 at 159:14-21, 163:10-25.

703. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 51; Scott George (TCW) Dep., CX00000640 at 152:7-153:2.

704. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52; Declaration of Randy Clifford (Ventura), CX00001706 at ¶¶ 7-9.

705. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

706. [REDACTED]

[REDACTED]. *Id.*;
Declaration of Randy Clifford (Ventura), CX00001706 at ¶ 8.

707. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

708. [REDACTED]

[REDACTED]. *Id.* at ¶ 53; Scott George (TCW) Dep., CX00000640 at 152:7-153:2; Lawrence (OCEMA) Dep., CX00000448 at 141:21-144:16.

709. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 53.

710. [REDACTED]

[REDACTED]. *Id.* at ¶ 54; *see also* Giltz (Evans Delivery) Dep., CX00000186 at 163:23-163:10; Lhotak (CPG) Dep., CX00000477 at 40:22-41:5 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

711. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 54; Giltz (Evans Delivery) Dep., CX00000186 at 125:16-128:15.

712. The [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 57. [REDACTED]

[REDACTED]

CX00005367 at 367.

713. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Langenfeld
Initial Report, CX00001266 at ¶ 57 n.83.

ii. Daily Chassis Usage for MH Movements is a relevant product submarket.

714. The ocean carriers' tariffs distinguish between: (1) ocean carrier transportation provided under through or "store-door" rates that included chassis and for which ocean carriers are billed at IEPs' CH rates, and (2) ocean carrier transportation provided under port-to-port tariffs or inland tariffs terminated at intermodal rail terminals which require motor carriers and/or their customers to obtain chassis at IEPs' MH rates. Joint Stipulations at ¶¶ 30, 33, 47, 49, 63, 65, 77, 79, 92, 94, 107, 109, 122, 124, 138, 140, 152, 154, 168-69, 181, 183.

715. [REDACTED]

[REDACTED]. Langenfeld Initial Expert
Report, CX00001266 at ¶ 62.

716. [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶
62.

717. [REDACTED]

[REDACTED].
Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

718. For example, [REDACTED]

[REDACTED]. *Id.*

719. In contrast, [REDACTED]

[REDACTED]. *Id.*

720. [REDACTED]

[REDACTED]. *Id.*; Chung (Wan Hai) Dep., CX00000304 at 40:22-41:5; Houghtalin (COSCO) Dep., CX00000337 at 88:2-89:3; Micena (Yang Ming) Dep. CX00000001 at 77:17-24.

721. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

722. [REDACTED]

[REDACTED]. *Id.*

at ¶ 63, Ex. 4.

723. [REDACTED]

[REDACTED]. *Id.* at ¶ 63.

B. Relevant Geographic Markets

724. Container drayage distance rarely exceeds 500 miles, which is the average distance for all truck shipments in the United States. CX00001920 at 920, *Average Length of Haul, Domestic Passenger and Freight Transport, United States, 1960-2016*, THE GEOGRAPHY OF TRANSPORT SYSTEMS, <https://transportgeography.org/contents/chapter5/transportation-modes-modal-competition-modal-shift/length-haul-passengers-united-states/> (last visited Feb. 28, 2022).

725. In 2017, 39% of the value and 65% of the weight of all goods carried by trucks in the U.S. travelled fewer than 50 miles. *Id.* at 921.

726. Drayage moves take place on even shorter distances than the national truck haul average, limiting the distance for which a chassis is used and returned. Evidence from Atlanta shows a notable decline in the average drayage distance from 216 miles in 2018 to 155 miles in 2019. CX00001926 at 928, Ari Ashe, *US drayage rates rise as length of haul shrinks*, THE JOURNAL OF COMMERCE (July 19, 2019), https://www.joc.com/trucking-logistics/drayage/us-drayage-rates-rise-length-haul-shrinks_20190719.html.

727. For the Los Angeles/Long Beach drayage market, about 59% of trips were for less than 40 miles in 2013. CX00001886 at 894, CALSTART, *Key Performance Parameters for Drayage Trucks Operating at the Ports of Los Angeles and Long Beach* (Nov 15, 2013), https://calstart.org/wp-content/uploads/2018/10/I-710-Project_Key-Performance-Parameters-for-Drayage-Trucks.pdf.

728. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. Rodrigue
Initial Expert Report, CX00001362 at ¶165.

729. [REDACTED]
[REDACTED]
[REDACTED]. *Id.*

730. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]. *Id.*

731. [REDACTED]

[REDACTED] According to Respondent CCM, “The Pools were developed large enough to try and encompass enough geography to encircle the migration of chassis between locations. Costs vary by region of the country, so the Pools’ geography was also considered to be small enough to help differentiate regional costs.” *Id.* at ¶ 166; *see also* CX00001923 at 923, CCM, *Frequently Asked Questions – General Subject Matters* (Sept. 22, 2017),

<https://www.ccmpool.com/UploadedDocuments/Frequently-Asked-Questions-9-22-17.pdf>.

732. [REDACTED]

[REDACTED]

[REDACTED].

The IEPs also proposed rates to ocean carriers by geographic region. *See* [REDACTED]

[REDACTED]; *see also*

[REDACTED]

[REDACTED]

[REDACTED].

733. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial

Expert Report, CX00001362 at ¶¶ 170-76.

734. In particular:

- The region surrounding the port facilities at Los Angeles / Long Beach is a relevant geographic market. *Id.* at ¶¶ 170, 179.
- The region surrounding the intermodal rail facilities of Chicago, Illinois is a relevant geographic market. *Id.* at ¶¶ 171-72, 179.
- The region surrounding the intermodal rail facilities of Memphis, Tennessee is a relevant geographic market. *Id.* at ¶¶ 173-74; 179.
- The region surrounding the port facilities at Savannah, Georgia is a relevant geographic market. *Id.* at ¶¶ 175-76, 179.

735.

. *Id.* at ¶ 179.

IX. ADDITIONAL FACTS.

736. A

CX00001362 at ¶ 112.

737.

Id. at ¶ 113.

738.

. *Id.* at ¶¶ 114-15.

739. The FMC-assembled Memphis Supply Chain Innovation Team submitted a white paper titled “A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity” in 2019, in which it concluded that “the answer to reducing gridlock and improving supply chain velocity in the Mid-South is a single gray chassis pool in Memphis offering greater supply, quality, fair access, and accountability. A gray pool allows interoperability of all chassis, which is the exchange of any [] chassis for usage.” CX00006417 at 150 (emphasis in original).

Respectfully submitted,

DATED: April 29, 2022

/s/ W. Stephen Cannon

W. Stephen Cannon

David D. Golden

Seth D. Greenstein

Richard O. Levine

Allison F. Sheedy

J. Wyatt Fore

Paulette Rodríguez López

Janice Johnson

Osob M. Samantar

CONSTANTINE CANNON LLP

1001 Pennsylvania Avenue, NW

Suite 1300 N

Washington, DC 20004

Phone: 202-204-3500

scannon@constantinecannon.com

Daniel Vitelli

CONSTANTINE CANNON LLP

335 Madison Avenue

9th Floor

New York, NY 10017

Phone: 212-350-2700

dvitelli@constantinecannon.com

*Attorneys for Complainant
Intermodal Motor Carriers Conference
of the American Trucking Associations*